Rajiv Gandhi School of Intellectual Property Law, Indian Institute of Technology Kharagpur

INFORMATION TECHNOLOGY LAW (IP61021)

End Term Examination Notes: Modules 5, 6 and 7 (condensed edition)

Module 5: Data Protection and the EU GDPR | Module 6: DPDP Act 2023 and Rules 2025 | Module 7: Cyber Contraventions and Cyber Crimes

Final year LLB | India, with EU and comparative material | Law reviewed up to 7 November 2026 | Legal information, not legal advice

Scope, Sources and Method

These are end term notes for Information Technology Law (IP61021). They cover the prescribed end term syllabus and nothing beyond it: the two class presentations (GDPR.pdf, 55 slides; CyberCrimes.pdf, 46 slides), all sixty entries in Modules 5, 6 and 7 of syllabus.md, and the supplied bare texts of the DPDP Act 2023, the DPDP Rules 2025 and the GDPR. Every slide was reviewed, and image slides were rendered and read; speaker notes and hidden slides are not present in PDF exports. This is the condensed edition: it keeps every topic, provision, case, recital and current law update of the full notes in fewer words, and explains the key GDPR recitals at the end of each Part I chapter (indexed in Appendix I).

Bare texts. The DPDP Act was checked against the Gazette text of 11 August 2023 (Act No. 22 of 2023), which is current except for the 2026 Removal of Difficulties Order and phased commencement (Chapter 13). The DPDP Rules were checked against G.S.R. 846(E) of 13 November 2025; the corrigenda (G.S.R. 892(E), 11 December 2025) were not seen. The GDPR was checked against the Official Journal text of 4 May 2016, unamended in substance, and the recitals were read from it. No IT Act bare text was supplied, so read the India Code text before quoting a section.

Method and conventions. Law is stated as at 7 November 2026. A dagger (†) marks a statement resting on secondary knowledge not checked against the primary text (listed in Appendix G); corrections to the slides and syllabus are collected in Appendix F. Citations appear in brackets; CJEU case numbers are written without their usual hyphen. Status words: in force; not yet commenced; amended; omitted; proposal (not law); under judicial consideration (operative unless stayed); persuasive (foreign authority). These notes are legal information, not legal advice.

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Part I: Data Protection and the EU GDPR (Module 5)

Part I follows GDPR.pdf and adds the syllabus.md entries the slides do not reach: the right to be forgotten, restriction, portability, objection, automated decisions and transfers. The GDPR is prescribed in its own right and is the benchmark for judging the DPDP Act.

Chapter 1: Privacy, Data Protection and Regulatory Models

1.1 Overview

This chapter explains why data protection law exists, separates it from neighbouring ideas, and traces the EU framework from the OECD Guidelines to the GDPR.

1.2 Why data protection law exists

Big data analytics (slide 3) structures, models and visualises vast datasets, turning trivial facts into knowledge about a person's habits, health, beliefs and finances, and linking online identities to real people. The cartoon on slide 2, a pupil asking how his name will be used before he writes it, captures the core idea: people care about how information is used, not only whether it stays secret. In a typical data flow the individual generates data; the controller (GDPR) or Data Fiduciary (DPDP Act) decides why and how it is used; a processor handles it on the controller's behalf; and third parties such as advertisers receive data or inferences. Each stage, from collection through combination and inference to disclosure, can create new information without the person's knowledge. Data protection law therefore regulates processing itself, asking whether there is a lawful basis, a defined purpose, minimal and accurate data, security, timely deletion and enforceable rights. Slide 6 states the structure: the law applies when personal data, including sensitive data, of an identifiable data subject is processed; a controller determines the nature and extent of processing; and a processor may carry it out under an outsourcing contract.

1.3 Four concepts that should not be merged

Privacy is the broadest: a sphere of autonomy and private life, including informational privacy, protected in India by Article 21 (*Puttaswamy*, 2017) and in Europe by Article 7 of the Charter and Article 8 ECHR. **Confidentiality** protects information shared in relationships of trust (doctor and patient, lawyer and client) and usually ends once information becomes public. **Data protection** is a regulatory regime governing the fair and lawful handling of personal data at every stage, whether or not secret; in the EU it is a separate Charter right (Article 8) implemented by the GDPR, and in India it is implemented by the DPDP Act. **Data security** is one component of data protection: the technical and organisational measures that keep data confidential, intact and available (GDPR Articles 5(1)(f) and 32; DPDP s. 8(5) with Rule 6; IT Act s. 43A until its omission). A perfectly secure organisation can still breach data protection law by collecting too much or misusing data, and public in-

formation, though not confidential, remains regulated by the GDPR (the DPDP Act excludes data the Data Principal herself made public, Chapter 10).

1.4 Mass surveillance and human rights: *Big Brother Watch*

Slide 4 shows that the State is often the most intrusive processor. In *Big Brother Watch and Others v the United Kingdom* (ECtHR, Applications nos. 58170/13, 62322/14 and 24960/15; Chamber, 13 September 2018; Grand Chamber, 25 May 2021), journalists and NGOs challenged, after the Snowden disclosures, three UK regimes: bulk interception by GCHQ (the TEMPORA programme), receipt of intelligence from foreign services (including NSA material from PRISM and Upstream), and acquisition of communications data from providers. **Held (Grand Chamber):** the bulk interception regime under section 8(4) of the Regulation of Investigatory Powers Act 2000 violated Articles 8 and 10 ECHR; the communications data regime violated Articles 8 and 10 because it was not in accordance with law; the intelligence sharing regime did not violate Article 8 (twelve votes to five). **Reasoning:** bulk interception is not unlawful in itself, but intrusion grows at each stage (interception, filtering, selection by selectors, examination by analysts), so a lawful regime needs "end to end safeguards": necessity and proportionality at every stage, independent authorisation at the outset, and supervision with independent review afterwards. The UK lacked independent authorisation, left selector categories out of warrant applications, required no prior internal authorisation for selectors linked to individuals, and did not adequately protect journalistic material. **Use:** persuasive in India; the benchmark for any surveillance power or State exemption, read with *Puttaswamy* and the critique of DPDP s. 17(2)(a).

> **Current law update**
>
> Slide 4 describes the 2018 Chamber judgment. The Grand Chamber judgment of 25 May 2021 is final and should be cited.

1.5 Regulatory models: sectoral and omnibus

Slide 5 contrasts the sectoral approach of the United States, where separate statutes govern separate industries, some areas are unregulated and the public and private sectors fall under different laws, with the omnibus approach of the EU, where one law covers all sectors, public and private. HIPAA (1996) and its Privacy Rule govern health information held by health plans, clearinghouses, providers transacting electronically and their business associates; COPPA (1998) and the FTC's COPPA Rule require operators of services directed to children under 13, or with actual knowledge of collecting from them, to obtain verifiable parental consent. Coverage depends on who holds the data, so hospital records are protected while a health app outside HIPAA's categories may not be. The omnibus GDPR gives a uniform baseline enforced by independent supervisory authorities coordinated by the European Data Protection Board, at the price of complexity and cost. India's DPDP Act is omnibus in form, binding the State too, but preserves stricter transfer laws (s. 16(2)) and operates in addition to other laws (s. 38(1)).

Current law update

The FTC's COPPA Rule amendments were published on 22 April 2025, took effect on 23 June 2025 and required compliance by 22 April 2026: separate parental consent for disclosures to third parties, a written retention policy, and biometric identifiers as personal information. No comprehensive US federal privacy statute had been enacted by the review date.†

1.6 International initiatives: the OECD and the Council of Europe

The OECD Guidelines on the Protection of Privacy and Transborder Flows of Personal Data (1980, revised 2013) are not binding, cover the public and private sectors and manual and electronic processing, and set out core principles (slides 7 to 9), usually listed as collection limitation, data quality, purpose specification, use limitation, security safeguards, openness, individual participation and accountability.† The Preface (slide 8) reveals a double motive: protecting people against unlawful storage, inaccurate data and unauthorised disclosure, while preventing divergent national laws from obstructing the transborder flows on which banking and insurance depend. Council of Europe Convention No. 108 (Strasbourg, 28 January 1981) is the first legally binding international instrument on data protection; it requires domestic implementation, sets out principles in Chapter II and was modernised in 2018 (slides 10 and 11). Its preamble seeks to reconcile respect for privacy with the free flow of information, a tension that runs through every later instrument. The ratification status of the 2018 protocol was not verified.

1.7 How the EU framework was built

Slides 12 to 20 give the sequence: the OECD Guidelines (1980); Convention 108 (1981); the Treaty of Maastricht (signed 1992, in force 1993) with its three pillars of the European Communities, foreign and security policy, and justice and home affairs; Directive 95/46/EC (24 October 1995); the Treaty of Amsterdam (signed 1997, in force 1999), creating the Area of Freedom, Security and Justice; the Charter of Fundamental Rights (2000); the Treaty of Lisbon (signed 2007, in force 2009), which made the Charter binding, collapsed the pillars and introduced Article 16 TFEU; and the GDPR, Regulation (EU) 2016/679, adopted on 27 April 2016, applicable from 25 May 2018, repealing the Directive. A directive leaves form and method to national law, and Recital 9 records that the Directive, though sound in principle, produced fragmentation and legal uncertainty that obstructed data flows and distorted competition. A regulation is directly applicable, so Article 1 aims to harmonise and to strengthen and unify protection (slides 19 and 20). The GDPR applies in the 27 Member States and, through the EEA Agreement, in Iceland, Liechtenstein and Norway (slide 18).

1.8 Primary law: Charter Articles 7 and 8 and Article 16 TFEU

Article 7 of the Charter protects private and family life, home and communications. Article 8 protects personal data: everyone has the right to protection of personal data concerning them; data must be processed fairly, for specified purposes, on consent or another legitimate basis laid down by law, with rights of access and rectification; and compliance is controlled by an independent authority. Article 16 TFEU restates the right and gives the Union competence to legislate, with independent supervision (slides 14 to 16). Data protection is therefore a fundamental right in its own

name, which is why the Court of Justice invalidated adequacy decisions in *Schrems I* and *II* by reference to the Charter (Chapter 8); limitations must satisfy Article 52(1) (provided by law, respecting the essence of the right, necessary and proportionate). Indian law reaches a similar point through Article 21 and the *Puttaswamy* proportionality test (Chapter 9).

1.9 Key recitals for this chapter

Recitals are the 173 numbered statements of reasons that precede the GDPR's 99 Articles. They are not binding in themselves and cannot override an Article, but the Court of Justice relies on them to interpret the Articles and examiners expect them to be cited; those below were read from the supplied text. **Recital 1** declares data protection a fundamental right, citing Charter Article 8(1) and TFEU Article 16(1). **Recital 4** states that processing should serve mankind and that the right is not absolute: it must be balanced against other fundamental rights, such as private life, religion, expression, the freedom to conduct a business and a fair trial, in accordance with proportionality, which underpins every balancing exercise in the GDPR. **Recitals 6 and 7** explain the need for a new framework: technology and globalisation have vastly increased collection and sharing by companies and public authorities, so a strong, coherent and well enforced framework is needed to build trust in the digital economy, and individuals should control their own data. **Recital 9** (slide 20) records the Directive's failure: sound principles but fragmented implementation, legal uncertainty and perceived online risks, which obstructed data flows and distorted competition.

1.10 Examination guidance

Data protection regulates processing at every stage; in the EU it is a fundamental right (Charter Article 8, TFEU Article 16), and in India it rests on *Puttaswamy* and the DPDP Act. Do not confuse Article 8 ECHR (private life) with Article 8 of the Charter (data protection), cite the 2018 Chamber judgment in *Big Brother Watch* as final, call the OECD Guidelines binding, or equate security with data protection. A problem on bulk interception in India is answered with *Puttaswamy* (legality, legitimate aim, proportionality) and, persuasively, *Big Brother Watch*'s stage by stage safeguards: independent authorisation, oversight and protection of journalistic sources.

Chapter 2: When and Where the GDPR Applies

2.1 Overview

Before any GDPR obligation is applied, decide whether the processing falls within the material scope (Article 2) and the territorial scope (Article 3).

2.2 The building blocks in Article 4

Personal data (Article 4(1), slide 23) is any information relating to an identified or identifiable natural person, identifiable directly or indirectly by an identifier (name, number, location data, online identifier) or by factors specific to physical, physiological, genetic, mental, economic, cultural or social identity. **Processing** (Article 4(2), slide 27) is any operation on personal data, automated or manual, from collection and storage to use, disclosure, combination, restriction and erasure; even

mere storage counts. A **filing system** (Article 4(6)) is a structured set of personal data accessible by specific criteria. The **controller** (Article 4(7)) determines purposes and means alone or jointly; the **processor** (Article 4(8)) processes on its behalf (slide 31).

2.3 Material scope: Article 2

Article 2(1) covers processing wholly or partly by automated means, and manual processing of data forming part of, or intended for, a filing system (slide 21): unstructured notes fall outside, while an alphabetical card index falls inside. Article 2(2) (slide 28) excludes activity outside Union law, Member State activity under the Common Foreign and Security Policy, purely personal or household activity, and processing by competent authorities for criminal law enforcement, which falls under the Law Enforcement Directive (EU) 2016/680.† Recital 16 places national security outside Union law, and Recital 18 explains that household activity, including correspondence, addresses and social networking within such activity, is excluded while the providers of the means, such as social networks, remain covered (slide 29). Article 2(3) deals with EU institutions, and Article 2(4) preserves the intermediary liability rules of Directive 2000/31/EC on electronic commerce.

2.4 Manual records and door to door preaching: the *Jehovah's Witnesses* case

Tietosuojavaltuutettu (Case C 25/17, Grand Chamber, 10 July 2018), called *Jehovah's Witnesses v Finland* in syllabus.md, was a reference from Finland after the Data Protection Supervisor acted against the Jehovah's Witnesses community (slide 22). **Facts:** members preaching door to door took handwritten notes of names, addresses, religious beliefs and family circumstances; the community organised and encouraged the note taking but never saw the notes. **Held:** the household exemption did not apply, because preaching is directed outside the members' private sphere; the notes formed a filing system, because they were structured by criteria such as geographical area for easy retrieval, whatever their physical form; and the community was a joint controller with its members, because it organised, coordinated and encouraged the collection, and joint control does not require access to the data. **Use:** material scope of paper records, the narrowness of the household exemption, and joint controllership (with *Fashion ID*).

2.5 Territorial scope: the establishment criterion in Article 3(1)

Article 3(1) applies the GDPR to processing in the context of the activities of an establishment of a controller or processor in the Union, regardless of where the processing occurs (slide 30). Establishment means the effective and real exercise of activity through stable arrangements, whatever the legal form (Recital 22, slide 33). "In the context of" is read broadly: in *Google Spain* (Case C 131/12, Grand Chamber, 13 May 2014), processing by Google Inc. in the United States was in the context of Google Spain's advertising sales because the two activities were inextricably linked. The slides' examples carry the numbering of the EDPB's Guidelines 3/2018 and appear to be taken from them;† they are hypotheticals. In Example 1 (slide 33), a US car maker's Brussels branch overseeing its European operations is an establishment, so Article 3(1) applies. In Example 4 (slide 34), a French company's car sharing app offered only in Morocco, Algeria and Tunisia is covered because processing occurs in the context of an EU establishment; the location of data subjects is irrelevant under Article 3(1). In Example 3 (slide 35), a South African hotel chain with no EU presence but a

website in English, German, French and Spanish falls outside Article 3(1); its position depends on Article 3(2), where EU languages are one sign of targeting.

2.6 Targeting and monitoring: Article 3(2)

Article 3(2) reaches controllers and processors outside the Union that process data of data subjects "who are in the Union" (location, not nationality) where processing relates to offering goods or services to them, paid or free, or to monitoring their behaviour in the Union. Under Recital 23 (slide 36) the question is whether the controller apparently envisages offering services to people in one or more Member States: mere accessibility of a website or contact details, or use of the controller's home language, is insufficient, but use of an EU language or currency with the possibility of ordering, or mention of EU customers, may suffice. Under Recital 24, tracking people on the internet, including profiling to predict preferences and behaviour, is monitoring. In Example 10 (slide 37), a US tourist in Europe using a US news app aimed solely at the US market (dollar pricing) is not covered; in Example 11, a Taiwanese bank serving German citizens who live in Taiwan is not covered; in Example 14 (slide 38), a Turkish photo album site in English, French, Dutch and German, priced in euros and delivering to France, the Benelux countries and Germany, is covered. A controller caught by Article 3(2) must normally appoint an EU representative (Article 27), and Article 3(3) covers places where Member State law applies by public international law, such as diplomatic missions. A scope question is answered in sequence: personal data and processing; automated or filing system; any Article 2(2) exclusion; an EU establishment (Article 3(1)); otherwise targeting or monitoring (Article 3(2)); then a representative.

2.7 Comparison with Section 3 of the DPDP Act

Section 3 of the DPDP Act covers digital personal data processed in India, whether collected digitally or collected physically and digitised later, and processing abroad connected with offering goods or services to Data Principals in India; it excludes personal or domestic processing and data made public by the Data Principal or under a legal obligation (commencing 13 May 2027). Unlike the GDPR it does not cover undigitised paper files, uses processing in India rather than establishment as the trigger, has no monitoring limb, excludes public data that the GDPR still protects, and exempts processing in India of foreigners' data under foreign contracts (s. 17(1)(d)). The missing monitoring limb lets foreign entities that profile Indians without selling to them escape the Act.

2.8 Key recitals for this chapter

Recital 14: protection applies to natural persons whatever their nationality or residence, but not to legal persons, so a company's name and contact details are not personal data. **Recital 15:** protection is technologically neutral to prevent circumvention; it covers automated processing and manual filing systems, but unstructured files and their cover pages fall outside, the basis of the *Jehovah's Witnesses* reasoning. **Recital 16:** national security and Common Foreign and Security Policy activities are outside the Regulation (slide 29). **Recital 18:** purely personal or household activity, including correspondence, addresses and social networking within such activity, is excluded, but providers of the means for such activity are covered (slide 29). **Recital 22:** establishment means effective and real activity through stable arrangements, whatever the legal form, and the process-

ing need not occur in the Union (slide 33). **Recital 23:** non EU controllers offering goods or services to people in the Union are covered if an intention to target is apparent; accessibility or a home language is insufficient, while EU languages or currency with ordering, or mention of EU customers, may suffice (slide 36). **Recital 24:** monitoring means tracking people online, including profiling to take decisions or to predict preferences, behaviour and attitudes.

2.9 Examination guidance

The GDPR covers automated processing and structured manual records, subject to Article 2's exclusions, carried out in the context of an EU establishment or by a non EU controller that targets or monitors people in the Union. Do not treat nationality as decisive, treat website accessibility as targeting, forget that Article 3(1) applies even when every data subject is outside the Union, or stretch the household exemption to internet publication. A Bengaluru firm selling German language courses priced in euros and tracking EU visitors falls within Article 3(2)(a) and (b) and must appoint an EU representative; the DPDP Act, by contrast, reaches foreign firms only through offering goods or services in India.

Chapter 3: Personal Data, Pseudonymisation and Controllership

3.1 Overview

This chapter explains personal data (Article 4(1), *Breyer*, *Nowak*), anonymisation and pseudonymisation (*EDPS v SRB*), and controllership (*Fashion ID*).

3.2 What counts as personal data

Article 4(1) (slide 23) has four elements: "any information" (facts and opinions in any form); "relating to" (by content, purpose or effect); "identified or identifiable" (directly, or indirectly by combining information, slide 24); and "natural person" (a living human being, so company data are not personal data, though a sole trader's may be). Recital 26 sets the identifiability test: all means reasonably likely to be used, such as singling out, by the controller or another person, considering cost, time and available technology. The flowchart on slide 25 asks three questions: does the data relate to a person; is the person alive; can the person be identified directly or by an identification number or physical, physiological, mental, economic, cultural or social factors? If all three answers are yes, the GDPR applies. Recital 27 excludes deceased persons and leaves them to Member States, while the DPDP Act lets a Data Principal nominate someone to exercise her rights after death (s. 14).

3.3 Dynamic IP addresses: *Breyer*

A dynamic IP address is assigned afresh at each connection; a website logs it, but only the internet service provider can link it to a subscriber. In *Patrick Breyer v Bundesrepublik Deutschland* (Case C 582/14, 19 October 2016; slide 24), German federal websites stored visitors' dynamic IP addresses to defend against cyber attacks. **Held:** a dynamic IP address is personal data for the website operator where it has legal means to identify the user with additional data held by the provider; in

Germany it could, after an attack, turn to the competent authority, which could obtain the subscriber's identity. Identification is not reasonably likely if prohibited by law or practically impossible because of disproportionate effort. The Court also held that national law may not categorically exclude the operator's interest in keeping its website operational from the legitimate interests balance. **Significance:** identifiability is judged from the holder's position, including lawful access to information held by others, and the reasoning extends to cookies and device identifiers (Recital 30).

3.4 Examination scripts as personal data: *Nowak*

In *Peter Nowak v Data Protection Commissioner* (Case C 434/16, Grand Chamber, 20 December 2017, ECLI:EU:C:2017:994; slide 26, not listed in syllabus.md), a candidate sought access to his corrected script and the Irish Commissioner refused to act, saying it was not personal data. **Held:** the candidate's answers are his personal data because they reflect his knowledge and competence; the examiner's comments are also his personal data because they evaluate his individual performance and affect him (paragraphs 42 and 43); and they are simultaneously the examiner's personal data, because the same information may relate to several people (paragraphs 44 and 45). **Significance:** "relating to" covers content, purpose and effect, so opinions and assessments about a person are personal data, which supports access to appraisals and evaluations.

3.5 Anonymised and pseudonymised data

Anonymous information, which does not relate to an identifiable person, falls outside the GDPR (Recital 26), whereas pseudonymised data, which can be attributed to a person only with separately kept additional information protected by technical and organisational measures (Article 4(5)), remain personal data for the key holder (slide 24). Anonymisation techniques (aggregation, generalisation, suppression, added noise) aim to make reidentification not reasonably likely for anyone; pseudonymisation replaces identifiers with codes or tokens (keyed hashing, tokenisation, encryption with a separate key). Encryption is reversible with the key, while hashing is one way; yet even a hash of a phone number can be reversed by hashing every possible number, so hashing alone rarely anonymises.

> **Current law update**
>
> In *EDPS v Single Resolution Board* (Case C 413/23 P, 4 September 2025, ECLI:EU:C:2025:645), the SRB sent coded comments to Deloitte and kept the key. The Court held that pseudonymised data are not personal data in all cases and for every person: for a recipient unable reasonably to reidentify, they may not be personal data, though they remain so for the key holder, whose information duties are judged from its own perspective at collection; personal opinions relate to their author. The Commission's Digital Omnibus proposal (COM(2025) 837, 19 November 2025) would make identifiability entity relative in Article 4(1); it is only a proposal, opposed by the EDPB and EDPS, and the Council's October 2026 mandate reportedly keeps the current definition. Slide 24 remains correct for the key holder.

The DPDP Act defines neither concept: personal data is any data about an individual identifiable by or in relation to it (s. 2(t)), and Rule 6(1)(a) treats encryption, masking, obfuscation and virtual to-

kens as security safeguards rather than exits from the Act.

3.6 Controllers, processors and joint controllers

Controllership is functional: whoever actually decides why and how data are processed is the controller (Article 4(7)), whatever a contract says, while a processor acts only on documented instructions under an Article 28 contract. Joint controllers (Article 26) must transparently allocate their responsibilities, especially for rights and information duties, make the essence of the arrangement available to data subjects, and remain answerable to each data subject individually; under Article 82(4) each party involved can be liable for the entire damage.†

3.7 Website plugins and joint control: *Fashion ID*

An embedded social plugin makes the visitor's browser send data such as the IP address and browser details to the platform as soon as the page loads, without any click or account. In *Fashion ID GmbH & Co. KG v Verbraucherzentrale NRW eV* (Case C 40/17, 29 July 2019; slide 32), an online retailer embedded Facebook's "Like" button and a consumer association sued. **Held:** the Directive did not preclude consumer associations from bringing proceedings;† and Fashion ID was a joint controller with Facebook Ireland only for the collection and disclosure by transmission of visitors' data, not for Facebook's later processing, over which it had no influence. **Reasoning:** by embedding the plugin, Fashion ID decisively influenced collection and transmission for its own commercial benefit (publicity for its goods), while Facebook gained data; each joint controller needs its own legitimate interest, and where consent is needed the website operator must obtain it and inform visitors for its share of the processing. **Significance:** governs cookies, pixels, analytics and embedded tools, and shows that joint control can be partial and stage specific. Earlier, a Facebook fan page administrator was held to be a joint controller with Facebook (*Wirtschaftsakademie Schleswig Holstein*, Case C 210/16, 5 June 2018).†

3.8 The DPDP position

A Data Fiduciary is any person who "alone or in conjunction with other persons" determines purpose and means (s. 2(i)) and a Data Processor acts on its behalf (s. 2(k)); the fiduciary remains responsible for its processors' processing regardless of contract (s. 8(1)) and may use a processor only under a valid contract (s. 8(2)). There is no Article 26 equivalent, so joint fiduciaries need not allocate responsibilities and the Act is silent on how liability is shared in a *Fashion ID* situation.

3.9 Key recitals for this chapter

Recital 26 treats pseudonymised data that can be attributed with additional information as data on an identifiable person, sets the test of all means reasonably likely to be used (singling out; cost, time and technology at the time of processing), and excludes anonymous information, including for statistical or research purposes; *Breyer* and *EDPS v SRB* apply it. **Recital 27** excludes deceased persons and leaves rules to Member States (slide 24). **Recital 28** says pseudonymisation reduces risk and helps compliance without excluding other measures, which explains its role as a safeguard in Articles 6(4), 25, 32 and 89. **Recital 30** recognises online identifiers such as IP addresses, cook-

ie identifiers and RFID tags, whose traces can be combined to profile and identify people, the legislative counterpart of *Breyer*.

3.10 Examination guidance

Personal data is any information relating to an identifiable living person, judged by means reasonably likely to be used; whoever determines purposes and means, alone or jointly, controls the operations it influences. Do not treat pseudonymised data as anonymous, treat IP addresses as always or never personal data, make a website operator responsible for a platform's later processing, or invent a DPDP anonymisation exemption. An Indian retailer targeting French customers with an embedded plugin and pixel falls within Article 3(2), is a joint controller for collection and transmission (*Fashion ID*), and needs an Article 26 arrangement.

Chapter 4: Principles and Lawful Processing

4.1 Overview

Every processing operation must comply with the seven principles in Article 5 and rest on one of the six lawful bases in Article 6.

4.2 The architecture of Chapter II

Chapter II (slide 39) contains Article 5 (principles), 6 (lawfulness), 7 (conditions for consent), 8 (children's consent for information society services), 9 (special categories), 10 (criminal convictions) and 11 (processing not requiring identification). Article 5(1) lists six principles and Article 5(2) adds accountability (slide 40); infringements attract the highest tier of fines.

4.3 Lawfulness, fairness and transparency

Under Article 5(1)(a) (slide 41), lawfulness means an Article 6 basis (plus an Article 9 condition for special data) and compliance with other law; fairness forbids processing that is unjustifiably detrimental, unexpected or misleading and respects reasonable expectations; and transparency (Recital 39) requires accessible, easily understood information in clear and plain language. Article 12 requires concise, intelligible information and a response to rights requests without undue delay and within one month, extendable by two months for complex or numerous requests if the data subject is told within the first month.

4.4 The six lawful bases

Article 6(1) (slide 42) permits processing only on: (a) consent for specific purposes (Chapter 5); (b) necessity for a contract with the data subject or for pre contract steps at her request, judged objectively, so behavioural advertising is not necessary for a social network contract; (c) a legal obligation laid down by Union or Member State law; (d) vital interests, meaning life or death situations; (e) a public task or official authority with a basis in law; or (f) legitimate interests of the controller or a third party unless overridden by the data subject's interests, especially a child's, which requires a legitimate interest, necessity and balancing and is unavailable to public authorities performing their

tasks. There is no hierarchy, consent is not the default, and the basis should be fixed before processing begins.

4.5 Purpose limitation

Data must be collected for specified, explicit and legitimate purposes and not further processed incompatibly, while archiving, research and statistics are deemed compatible with Article 89(1) safeguards (Article 5(1)(b), slide 47). Without consent or a law, Article 6(4) (slide 48) requires a compatibility assessment considering the link between purposes, the context and relationship, the nature of the data (especially special or criminal data), the possible consequences, and safeguards such as encryption or pseudonymisation. As slide 47 and Recital 50 indicate, compatible further processing needs no new basis, while incompatible processing needs its own basis, such as consent. The slide 2 cartoon is a purpose limitation story.

4.6 Data minimisation, accuracy and storage limitation

Minimisation (Article 5(1)(c), slide 49): data must be adequate, relevant and limited to what is necessary, and processed only if the purpose cannot reasonably be achieved by other means (Recital 39). **Accuracy** (Article 5(1)(d), slide 50): data must be accurate and, where necessary, kept up to date, with inaccurate data erased or rectified without delay, enforced through the right to rectification (Article 16). **Storage limitation** (Article 5(1)(e), slide 51): identifiable data must be kept no longer than necessary, except for archiving, research or statistics with safeguards, and controllers should set time limits for erasure or periodic review (Recital 39).

4.7 Integrity and confidentiality: security and breach notification

Article 5(1)(f) (slide 52) requires appropriate security against unauthorised or unlawful processing and accidental loss, destruction or damage, by technical and organisational measures. Article 32 adds risk based measures such as pseudonymisation and encryption, resilience, restoration of access and regular testing. Under Article 33, a breach must be notified to the supervisory authority without undue delay and, where feasible, within 72 hours of awareness, unless it is unlikely to result in a risk; under Article 34, data subjects must be told without undue delay where the risk is high, unless, for example, the data were encrypted. The DPDP regime has no risk threshold: s. 8(6) and Rule 7 require every breach to be intimated to the Board and to each affected Data Principal without delay, with a detailed report to the Board within 72 hours (from 13 May 2027).

4.8 Accountability

Article 5(2) makes the controller responsible for, and able to demonstrate, compliance; slide 53 calls it a new principle that obliges the controller. It is implemented through Article 24 (appropriate measures), Article 25 (protection by design and by default), Article 30 (records of processing), Article 35 (impact assessments for high risk processing) and Articles 37 to 39 (data protection officers). Breach of the basic principles can attract fines up to EUR 20 million or 4 per cent of worldwide annual turnover, whichever is higher (Article 83(5)).

4.9 How the DPDP Act handles the same ideas

The DPDP Act has no list of principles, but lawfulness appears in s. 4 (a lawful purpose, meaning anything not expressly forbidden by law, plus consent or a legitimate use), transparency in s. 5, Rule 3 and s. 6(3), purpose limitation and minimisation in s. 6(1) (consent limited to the specified purpose and necessary data), accuracy in s. 8(3) (only where data are used for decisions or disclosed), storage limitation in s. 8(7) and (8) with Rule 8, security in s. 8(5) with Rule 6, breach intimation in s. 8(6) with Rule 7, and accountability in ss. 8(1), 8(4) and 10. It has no fairness principle and no legitimate interests basis.

4.10 Key recitals for this chapter

Recital 39 (slides 41, 49 and 51) summarises Article 5: processing must be lawful, fair and transparent; information must be accessible and clear about the controller, purposes, risks, safeguards and rights; purposes must be explicit, legitimate and fixed at collection; data must be adequate, relevant and limited, stored for a strict minimum and processed only if the purpose cannot reasonably be met otherwise; and controllers should set erasure or review deadlines, rectify or delete inaccurate data, and secure data and equipment against unauthorised access. **Recital 40** requires consent or another basis laid down by law for every processing operation. **Recital 47** frames legitimate interests around the data subject's reasonable expectations given her relationship with the controller (as a client or employee, for example): her interests may override where further processing is unexpected, the basis is unavailable to public authorities in their tasks, fraud prevention is a legitimate interest, and direct marketing may be one. **Recital 50** (slide 47) allows compatible further processing without a separate basis, lists the compatibility factors, permits further processing regardless of compatibility with consent or a proportionate law (while preserving information and the right to object), treats archiving, research and statistics as compatible, and treats reporting possible crimes to authorities as a legitimate interest. **Recital 74** establishes the controller's responsibility and liability and its duty to demonstrate effective measures proportionate to risk (Articles 5(2) and 24). **Recital 75** defines risk as physical, material or non material damage, such as discrimination, identity theft, fraud, financial or reputational harm, loss of professional secrecy, reversal of pseudonymisation and loss of control, and identifies risky processing: special or criminal data, profiling, children's data and large scale processing. **Recital 78** explains protection by design and by default: minimisation, early pseudonymisation, transparency, monitoring by data subjects and improved security, with producers and public tenders encouraged to build it in (Article 25). **Recital 83** requires risk evaluation and mitigation such as encryption, considering the state of the art, cost and the nature of the data (Article 32). **Recital 85** requires notification to the authority without undue delay and, where feasible, within 72 hours unless risk is unlikely, with reasons for delay and information in phases (Article 33). **Recital 86** requires communication to data subjects without undue delay where risk is high, describing the breach and mitigation, in cooperation with authorities (Article 34), unlike Rule 7's duty to tell every Data Principal. **Recital 150** gives every supervisory authority power to fine, with amounts fixed case by case by nature, gravity, duration, consequences and mitigation, "undertaking" bearing its meaning under Articles 101 and 102 TFEU and individuals' fines reflecting income levels (Article 83); compare DPDP s. 33(2).

4.11 Examination guidance

Every operation needs an Article 6 basis and must respect all seven principles, which the controller must be able to prove. Do not treat consent as preferred, give public authorities legitimate interests, forget that the 72 hours run from awareness, or credit the DPDP Act with fairness or legitimate interests. A delivery app reusing order histories for individual pricing faces a weak link, unexpected use and adverse consequences under Article 6(4), so fresh consent is needed, together with Article 22 analysis if pricing is automated.

Chapter 5: Consent

5.1 Overview

Consent is the most cited and most misused basis; this chapter covers Articles 4(11), 7 and 8, the forced consent enforcement record and DPDP s. 6.

5.2 What consent means

Slide 43 links Article 6(1)(a) to the definition in Article 4(11), the conditions in Article 7 and the rule for children in Article 8. Consent is any freely given, specific, informed and unambiguous indication of the data subject's wishes, by statement or clear affirmative action. It is **freely given** only where there is a genuine choice and the person can refuse or withdraw without detriment (Recitals 42 and 43); **specific** when tied to defined purposes, with separate consent for separate purposes; **informed** when the data subject knows at least the controller's identity and the purposes (Recital 42); and **unambiguous** when given by a statement or a clear affirmative act. Recital 32 (slide 45) accepts ticking a box, choosing settings or other clear conduct, rejects silence, pre ticked boxes and inactivity, and requires electronic requests to be clear, concise and not unnecessarily disruptive; *Planet49* (Case C 673/17, 1 October 2019) applied the pre ticked box rule to cookies.†

5.3 Conditions for consent: Article 7

Article 7 (slide 44) has four rules. The controller must be able to demonstrate consent (Article 7(1)). A consent request in a written declaration covering other matters must be clearly distinguishable, intelligible, easily accessible and in plain language, and any infringing part is not binding (Article 7(2)). Consent may be withdrawn at any time without affecting earlier processing, the data subject must be told this beforehand, and withdrawal must be as easy as giving consent (Article 7(3)). In assessing whether consent is free, utmost account is taken of whether a contract or service is made conditional on consent to processing that it does not need (Article 7(4), circled on the slide), which targets "take it or leave it" designs.

5.4 Children: Article 8

Where consent is relied on for information society services offered directly to a child, processing is lawful from the age of 16; below that, a holder of parental responsibility must consent or authorise. Member States may lower the age to not below 13, controllers must make reasonable efforts to verify parental consent using available technology, and national contract law is unaffected. The DPDP

Act is stricter: everyone under 18 is a child, verifiable parental consent is required for all processing, and tracking, behavioural monitoring and targeted advertising directed at children are banned (s. 9).

5.5 Forced and bundled consent: the enforcement record

Slide 46 reproduces noyb's project page. In May 2018 noyb filed four "forced consent" complaints, in France against Google, in Austria against Facebook, in Belgium against Instagram and in Germany against WhatsApp, arguing that users were forced to accept privacy policies and terms of service wholesale. The page records that the CNIL fined Google 50 million euros in January 2019, that the fine was appealed with a hearing still to be fixed, and that the Meta complaints went to the Irish Data Protection Commission as lead authority under the one stop shop, because the Meta companies' main EU establishment is in Ireland.

Current law update

The CNIL fined Google LLC 50 million euros on 21 January 2019 for lack of transparency, inadequate information and invalid consent to ad personalisation; the Conseil d'État dismissed the appeal on 19 June 2020 (no. 430810), holding the CNIL competent because Google LLC then had no EU main establishment and that the consent was neither specific nor unambiguous. After EDPB binding decisions, the Irish DPC announced on 4 January 2023 fines on Meta Platforms Ireland of 210 million euros (Facebook) and 180 million euros (Instagram), and on 19 January 2023 a fine of 5.5 million euros on WhatsApp Ireland, rejecting reliance on contractual necessity for behavioural advertising. noyb's own table still listed those complaints as pending when last reviewed, so cite the regulators' decisions.

In *Meta Platforms v Bundeskartellamt* (Case C 252/21, 4 July 2023), dominance does not in itself invalidate consent but is an important factor, and personalised advertising is not generally necessary for a social network contract;† EDPB Opinion 08/2024 then addressed "consent or pay" models of large platforms.†

5.6 Consent under the DPDP Act

Section 6(1) requires consent to be free, specific, informed, unconditional and unambiguous with a clear affirmative action, for the specified purpose and limited to necessary data; in the Act's illustration, a telemedicine app's consent covers telemedicine but not access to phone contacts. Under s. 6(2), parts infringing the law are invalid, so an insurance app's waiver of the right to complain to the Board fails while the rest stands. Section 6(3) requires clear, plain language, availability in English or an Eighth Schedule language, and the contact details of a DPO or authorised person. Under ss. 6(4) to (6), consent may be withdrawn as easily as it was given; the Data Principal bears the consequences without affecting earlier processing (a shopping platform may refuse new orders but must complete paid ones); and the fiduciary must, within a reasonable time, stop processing and make its processors stop (a telecom company must stop emailed bills). Sections 6(7) to (9) provide for Consent Managers, and s. 6(10) puts the burden of proving notice and consent on the fiduciary. Compared with the GDPR, the word "unconditional" states the rule against bundling more

strongly than Article 7(4)'s "utmost account", necessity is built into consent, and the protection of children is broader.

5.7 Key recitals for this chapter

Recital 32 (slide 45) requires a clear affirmative act (a written, electronic or oral statement, ticking a box, choosing settings), excludes silence, pre ticked boxes and inactivity, requires consent to cover all processing for the same purposes and every purpose where there are several, and demands clear, concise and non disruptive electronic requests. **Recital 33** allows consent to certain areas of scientific research in line with recognised ethical standards ("broad consent"), with the option of consenting to parts only. **Recital 38** gives children specific protection, especially against marketing and profiling and in services offered directly to them, and dispenses with parental consent for preventive or counselling services, paralleling DPDP s. 9(3). **Recital 42** requires demonstrable consent, awareness of its extent in declarations covering other matters, pre formulated declarations in plain language without unfair terms, knowledge of the controller and purposes, and a genuine free choice without detriment. **Recital 43** denies validity to consent where there is a clear imbalance, especially with public authorities, and presumes consent not free where separate consents are not allowed for different operations or a contract or service depends on unnecessary consent; it is the foundation of the forced consent cases and of Article 7(4).

5.8 Examination guidance

Valid consent is freely given, specific, informed and unambiguous, given by an affirmative act, provable, and as easy to withdraw as to give; bundling unnecessary processing destroys its freedom. Do not treat acceptance of terms as consent to everything, treat withdrawal as retroactive, apply the age of 16 in India, or cite slide 46 as showing a pending appeal. A social network that makes ad personalisation a condition of sign up fails under GDPR Articles 6(1)(b) and 7(4) and Recital 43, as the Meta decisions show, and under DPDP s. 6(1), where consent is the only route and must be unconditional.

Chapter 6: Special Categories of Personal Data

6.1 Overview

Special categories are subject to a general prohibition with exceptions; this chapter covers Article 9, *Lindqvist*, indirect revelation and the DPDP approach.

6.2 The Article 9 regime

Article 9(1) (slide 54) prohibits processing data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs or trade union membership, and genetic data, biometric data for unique identification, health data and data concerning sex life or sexual orientation, because their misuse risks discrimination and serious harm. Article 9(2) lifts the prohibition, in addition to an Article 6 basis, for explicit consent (unless law forbids it); employment, social security and social protection law; vital interests where consent is impossible; legitimate activities of not for profit bod-

ies concerning members; data manifestly made public by the data subject; legal claims and courts acting judicially; substantial public interest under law with safeguards; preventive or occupational medicine and health or social care; public health; and archiving, research or statistics. Criminal conviction data are governed separately by Article 10 (official authority, or an authorising law with safeguards).

6.3 Health data on a personal website: *Lindqvist*

Criminal proceedings against Bodil Lindqvist (Case C 101/01) was decided on 6 November 2003; slide 54 and syllabus.md wrongly say 2004, and the slide spells it "Lindquist". **Facts:** a Swedish parish catechist created web pages describing herself and eighteen colleagues by name, job and hobbies, noting that one had injured her foot and was on half time medical leave, without consent; she was prosecuted. **Held:** naming and identifying people on a web page is processing by automatic means; the injured foot reference is health data under Article 8(1) of the Directive, which covers all physical and mental aspects of health; the household exemption does not cover publication on the internet to an indefinite audience; and loading data onto an EU hosted web page accessible worldwide is not a transfer to a third country under Article 25. **Significance:** the broad reading of health data, the limits of the household exemption and the meaning of "transfer" (Chapter 8).

6.4 Indirect revelation of sensitive data

In *OT v Vyriausioji tarnybinės etikos komisija* (Case C 184/20, 1 August 2022), publishing the names of officials' spouses or partners could indirectly reveal sexual orientation and so engaged Article 9.† What can be inferred matters more than the label: purchases may reveal health, and location may reveal religion.

6.5 The DPDP approach

The DPDP Act has no sensitive category; it gives extra protection only to children and persons with disability who have lawful guardians (s. 9), and lists "volume and sensitivity" as a factor for notifying Significant Data Fiduciaries (s. 10(1)(a)). Until IT Act s. 43A is omitted on 13 May 2027, the SPDI Rules 2011 continue to define sensitive personal data or information, such as passwords, financial information, health conditions, sexual orientation, medical records and biometrics,† and both the 2018 draft and the 2019 Bill had sensitive categories.† The uniform approach is simple and context sensitive, but it ignores the particular dangers of health, caste, religion and sexual orientation data in Indian society, and the Significant Data Fiduciary mechanism only partly fills the gap.

6.6 Key recitals for this chapter

Recital 51 gives particularly sensitive data specific protection because of the significant risks involved; states that the term "racial origin" does not endorse theories of separate human races; provides that photographs are biometric data only when processed by specific technical means allowing unique identification or authentication, so an ordinary staff photograph is not, but facial recognition processing is; bars processing except in specified cases while keeping the general principles; allows Member State adaptation for legal obligations and public tasks; and requires explicit deroga-

tions, for example explicit consent or the legitimate activities of foundations and associations. Recital 75 also treats special category processing as a source of risk.

6.7 Examination guidance

Special category data need an Article 9(2) exception plus an Article 6 basis, and health data and inferred data are read broadly. Date *Lindqvist* correctly to 6 November 2003, do not treat explicit consent as the only exception, and do not attribute a "sensitive data" concept to the DPDP Act. A fitness app publishing users' names, heart rates and surgery hospitals processes health data that users have not themselves made public, so it needs explicit consent and must minimise.

Chapter 7: Rights of Data Subjects

7.1 Overview

Chapter III gives data subjects rights to know about and influence processing; this chapter explains each right, *Google Spain*, the right to explanation debate and the narrower DPDP rights.

7.2 The catalogue of rights and how they are exercised

Slide 55 lists the right to know (information duties), access, rectification, erasure, restriction, portability, objection and rights concerning automated decisions, and syllabus.md notes that portability and automated decision rights are absent from the DPDP Act. Under Article 12, controllers must facilitate the rights and respond without undue delay and within one month, extendable by two months with notice; action is free unless requests are manifestly unfounded or excessive, when a reasonable fee or refusal is possible with the burden on the controller; and identity may be verified where there is reasonable doubt.

7.3 The right to know: Articles 13 and 14

Information is owed at collection (Article 13), or within a reasonable period and at most one month when data come from elsewhere (Article 14): the controller's identity and contacts, the DPO's contacts, the purposes and legal basis (including legitimate interests), recipients, transfers and safeguards, the retention period, the rights, withdrawal of consent, the right to complain, whether provision is statutory or contractual and the consequences of not providing data, and any automated decision making with meaningful information about the logic involved and its consequences.

7.4 Access and rectification: Articles 15 and 16

Article 15 gives confirmation of processing, access, a copy and the information above, and is the gateway to the other rights. Article 16 gives rectification of inaccurate data and completion of incomplete data without undue delay, enforcing the accuracy principle.

7.5 Erasure and the right to be forgotten: Article 17

Erasure is due without undue delay where data are no longer necessary, consent is withdrawn without another basis, a successful objection is made, processing is unlawful, a legal obligation requires

it, or the data were collected from a child for information society services (Article 17(1)). A controller that made data public must take reasonable steps to tell other controllers to erase links and copies (Article 17(2)), and the right yields to freedom of expression, legal obligations and public tasks, public health, archiving and research, and legal claims (Article 17(3)).

In *Google Spain SL and Google Inc. v Agencia Española de Protección de Datos and Mario Costeja González* (Case C 131/12, Grand Chamber, 13 May 2014), a search of Mr Costeja González's name showed 1998 newspaper notices of an auction to recover his social security debts, long since resolved. **Held:** a search engine processes personal data by finding, indexing, storing and displaying it and is the controller of that processing; the processing was in the context of Google Spain's advertising activities, so EU law applied; and the operator must, on request, remove from name search results links to third party pages, even lawfully published ones, where the information is inadequate, irrelevant or no longer relevant, or excessive in the light of the time elapsed. **Reasoning:** a name search produces a structured profile that would otherwise be hard to assemble, so the interference with Charter Articles 7 and 8 is serious; as a rule those rights override the operator's economic interest and the public's interest in access, unless the person's role in public life justifies a preponderant public interest. **Significance:** the origin of the right to be forgotten now in Article 17; the newspaper's archive itself was untouched. In *Google v CNIL* (Case C 507/17, 24 September 2019), EU law requires delisting on EU versions of the search engine, not worldwide, though national authorities may order wider delisting after balancing.† The DPDP Act gives a right to erasure (s. 12(3)) but no right to be forgotten, and does not apply to data the Data Principal made public (s. 3(c)(ii)).

7.6 Restriction of processing: Article 18

Restriction means keeping data but marking them so that they are not otherwise used. It applies while accuracy is contested, where processing is unlawful but the data subject prefers restriction to erasure, where the controller no longer needs the data but she needs them for legal claims, and while an objection is being assessed. Restricted data may be stored but otherwise used only with consent, for legal claims, to protect others' rights or for important public interest, and she must be told before the restriction is lifted. The DPDP Act has no equivalent.

7.7 Data portability: Article 20

The data subject may receive data she provided, in a structured, commonly used and machine readable format, and transmit them to another controller, directly where technically feasible, where processing is automated and based on consent or contract. It covers playlists, contacts or fitness logs she supplied, but not inferred data or processing for legal obligations or public tasks, and it aims at individual control and competition by reducing lock in. The DPDP Act omits it.

7.8 The right to object: Article 21

A data subject may object, on grounds relating to her situation, to processing based on a public task or legitimate interests, including profiling, and the controller must stop unless it shows compelling legitimate grounds overriding her interests or needs the data for legal claims. Objection to direct marketing, including related profiling, is absolute and must be brought to her attention at the

first communication. The DPDP Act's nearest equivalent, withdrawal of consent, does not reach processing under legitimate uses.

7.9 Automated decisions and the right to explanation: Article 22

Article 22(1) protects against decisions based solely on automated processing, including profiling, with legal or similarly significant effects, such as automatic refusal of an online credit application or recruitment without human involvement (Recital 71). The exceptions are contractual necessity, authorisation by law with safeguards, and explicit consent; in the contract and consent cases the controller must offer at least human intervention and the chance to express a view and contest the decision (Article 22(3)), and special category data may be used only with explicit consent or substantial public interest (Article 22(4)). No operative article creates a "right to explanation": Articles 13(2)(f), 14(2)(g) and 15(1)(h) require meaningful information about the logic involved, and only Recital 71 mentions an explanation. Wachter, Mittelstadt and Floridi (2017) argued that no right to explanation exists, while Selbst and Powles argued that meaningful information implies one.† The Court has since given these provisions substance: in *SCHUFA Holding* (Case C 634/21, 7 December 2023) a credit score was itself an automated decision where lenders draw strongly on it,† and in *Dun & Bradstreet Austria* (Case C 203/22, 27 February 2025) the data subject is entitled to an explanation of the procedure and principles actually applied, with trade secrets weighed by a court or authority.† Article 86 of the EU AI Act (Regulation (EU) 2024/1689) adds an explanation right for certain high risk AI decisions.† Automated processing is broader than artificial intelligence (a fixed income cut off is automated too), and a token human sign off is not meaningful involvement.

7.10 GDPR and DPDP rights compared

The GDPR's detailed information duties correspond to the shorter DPDP notice (s. 5, Rule 3); access with a copy corresponds to a summary of data, processing and recipients (s. 11); rectification and erasure correspond to correction, completion, updating and erasure subject to the purpose and legal retention (s. 12). Restriction, portability, objection and automated decision protection have no DPDP counterpart beyond the accuracy duty in s. 8(3), while the DPDP Act adds nomination (s. 14), compulsory internal grievance redressal before the Board (s. 13) and duties of Data Principals (s. 15).

7.11 Key recitals for this chapter

Recital 58 requires concise, accessible, plain information, with visualisation where appropriate and electronic provision such as websites, especially where many actors and complex technology (online advertising) obscure who collects data, and language a child can understand when processing targets children (Article 12(1)). **Recital 63** gives easy access at reasonable intervals to verify lawfulness, including medical records, with information on purposes, period, recipients, the logic of automatic processing and the consequences of profiling; remote secure access where possible; protection of others' rights, trade secrets and software copyright, but never a total refusal; and narrowing of requests where large quantities are held, later used in *Dun & Bradstreet Austria*. **Recital 65** provides rectification and a "right to be forgotten" where retention infringes the law, particularly for data given as a child and exercisable in adulthood, subject to expression, legal

obligation, public task, public health, archiving and research, and legal claims (Article 17(1) and (3)). **Recital 66** extends erasure online by obliging a controller that published data to tell other controllers to erase links and copies, taking reasonable technical steps (Article 17(2)). **Recital 68** sets the portability conditions: data provided by the data subject, automated processing, consent or contract, interoperable formats encouraged, no application to public duties, no obligation to adopt compatible systems, respect for others in shared data sets, and direct transmission where feasible (Article 20). **Recital 69** puts the burden on the controller to show compelling legitimate grounds against an objection (Article 21(1)). **Recital 71** sets the protection against solely automated significant decisions (credit refusal, recruitment without human involvement), defines profiling, allows exceptions by law (including fraud and tax evasion monitoring), contract or explicit consent, requires safeguards including information, human intervention, expression of view, an explanation of the decision and the right to challenge it, excludes children, and requires sound statistical methods, error correction and the prevention of discrimination; it is the textual home of the "right to explanation". **Recital 146** requires full and effective compensation for damage caused by infringing processing, interpreted broadly, with exemption only for those not in any way responsible, liability of each party for the entire damage (apportionable in joined proceedings) and recourse among them (Article 82), in sharp contrast with the DPDP Act. **Recital 153** requires Member States to reconcile data protection with freedom of expression, including journalistic, academic, artistic and literary expression, through derogations, especially for audiovisual work and news archives, interpreting journalism broadly (Article 85).

7.12 Examination guidance

Rights are exercised within one month (Article 12), erasure is balanced against expression (*Google Spain*), and solely automated significant decisions need safeguards (Article 22). Do not say that *Google Spain* required deletion of the newspaper archive, that Article 22 expressly grants a right to explanation, that portability covers all data, or that the DPDP Act has objection or portability rights. An Indian lender that automatically rejects German applicants falls within Article 3(2)(a) and Article 22; even under the contract exception it must provide human review, a chance to contest and meaningful information about the procedure and principles actually applied.

Chapter 8: Cross Border Transfers

8.1 Overview

Chapter V of the GDPR controls transfers outside the Union; this chapter covers adequacy, safeguards, derogations, *Schrems I* and *II*, the Data Privacy Framework and the DPDP model.

8.2 Why transfers are regulated and how Chapter V works

To stop protection being evaded by moving data abroad, Article 44 permits transfers, including onward transfers, only if Chapter V is met and protection is not undermined. **Adequacy** (Article 45) is a Commission decision that a country ensures adequate protection, judged by the rule of law, public authority access, independent supervision and international commitments, after which transfers need no authorisation. **Appropriate safeguards** (Article 46) include standard contractual clauses

adopted by the Commission and binding corporate rules (Article 47), with enforceable rights and effective remedies. **Derogations** (Article 49) cover explicit informed consent, contractual necessity, important public interest, legal claims and vital interests, and are read narrowly. Article 48 recognises foreign orders to transfer only under an international agreement such as a mutual legal assistance treaty, and publishing on an EU hosted website is not itself a transfer (*Lindqvist*).

8.3 *Schrems I*

Maximillian Schrems v Data Protection Commissioner (Case C 362/14, Grand Chamber, 6 October 2015). **Facts:** an Austrian Facebook user complained, after the Snowden disclosures, that US law did not protect data transferred by Facebook Ireland, and the Irish Commissioner considered herself bound by the Safe Harbour adequacy decision (2000/520). **Held:** national authorities must examine such complaints independently, but only the Court can invalidate an adequacy decision, and Safe Harbour was invalid. **Reasoning:** adequacy requires protection "essentially equivalent" to that in the Union read with the Charter; generalised access by public authorities to the content of communications compromises the essence of Article 7, and the absence of any remedy compromises the essence of Article 47.

8.4 *Schrems II*, which is also *Data Protection Commissioner v Facebook Ireland*

syllabus.md lists *Data Protection Commissioner v Facebook Ireland* separately, but it is *Schrems II*: *Data Protection Commissioner v Facebook Ireland Ltd and Maximillian Schrems* (Case C 311/18, Grand Chamber, 16 July 2020), so there are two Schrems cases, not three. **Facts:** after *Schrems I*, Facebook relied on standard contractual clauses and the EU US Privacy Shield, and the Irish High Court referred both mechanisms. **Held:** the clauses decision is valid, but exporters must check case by case whether the destination's law allows compliance, add supplementary measures or suspend transfers, and supervisory authorities must suspend transfers where the clauses cannot be honoured; the Privacy Shield decision was invalid. **Reasoning:** US surveillance under FISA Section 702 and Executive Order 12333 was not limited to what is strictly necessary and gave no rights actionable in court, and the Ombudsperson was neither independent nor able to bind the intelligence services. **Significance:** the origin of transfer impact assessments, and the reason transfers to countries with broad surveillance laws remain fragile.

8.5 Standard contractual clauses after *Schrems II*

Implementing Decision (EU) 2021/914 of 4 June 2021 adopted modular clauses for transfers from controller to controller, controller to processor, processor to processor and processor to controller. Exporters assess the destination's law and practice, especially public authority access, and add technical measures (such as strong encryption with keys held in the EU), contractual or organisational supplementary measures, following EDPB Recommendations 01/2020.†

8.6 The EU and United States Data Privacy Framework

Current law update

The Commission adopted an adequacy decision for the EU US Data Privacy Framework on 10 July 2023 (Decision (EU) 2023/1795), resting on new US safeguards including a Data Protection Review Court.† In *Latombe v Commission* (Case T 553/23, 3 September 2025), the General Court dismissed an annulment action, finding the Review Court sufficiently independent; an appeal (Case C 703/25 P), lodged on 31 October 2025, was pending at the review date. On 22 May 2023, after EDPB binding decision 1/2023, the Irish DPC fined Meta Ireland 1.2 billion euros for transfers made under clauses after *Schrems II* and ordered them suspended.

8.7 India and the DPDP model

India has no EU adequacy decision, so EU exporters to Indian processors rely on clauses and impact assessments.† The DPDP Act reverses the GDPR model: s. 16(1) lets the government restrict transfers to notified countries, a negative list under which transfers are otherwise free; s. 16(2) preserves stricter laws such as the RBI's April 2018 direction on storing payment system data;† Rule 15 subjects transfers to government orders on making data available to foreign States or entities under their control; and Rule 13(4) allows committee specified data of Significant Data Fiduciaries to be kept in India (all from 13 May 2027). Section 17(1)(d) exempts processing in India of foreigners' data under foreign contracts, protecting the outsourcing industry. In short, GDPR transfers are barred unless a route applies and require an impact assessment, while DPDP transfers are allowed unless restricted, with no impact assessment and localisation only through sectoral rules or Rule 13(4).

8.8 Key recitals for this chapter

Recital 101 recognises that international flows are necessary for trade and cooperation but must not undermine protection, including through onward transfers, and must fully comply with Chapter V (Article 44). **Recital 103** lets the Commission decide, for the whole Union, that a country, territory, sector or international organisation is adequate, removing the need for authorisation, and to revoke such decisions with reasons (Article 45). **Recital 104** requires the Commission to consider the rule of law, access to justice, human rights standards and the laws on public security, defence, national security, public order and criminal law, and demands guarantees "essentially equivalent" to EU protection, independent supervision, cooperation with EU authorities, and effective, enforceable rights and redress, the test applied in *Schrems I* and *II*. **Recital 108** requires appropriate safeguards where there is no adequacy decision (binding corporate rules, Commission or authority clauses, authorised contractual clauses), ensuring compliance at EU level, enforceable rights, effective redress and compensation, and respect for the principles and protection by design (Article 46). **Recital 111** allows derogations for explicit consent, occasional transfers necessary for a contract or legal claim (including out of court and regulatory procedures), important public interest grounds in law, and transfers from public registers, which must not cover entire registers and, where access is limited to persons with a legitimate interest, are made only at their request; the word "occasional" explains the narrow reading of Article 49.

8.9 Examination guidance

GDPR transfers need adequacy, safeguards or a derogation delivering essentially equivalent protection (*Schrems I* and *II*), while DPDP transfers are free unless restricted. Do not treat *DPC v Facebook Ireland* as a third case, say that *Schrems II* invalidated the clauses, say that the Data Privacy Framework has been struck down, or call s. 16 an adequacy system. A German hospital using an Indian billing processor needs the controller to processor clauses, an impact assessment of Indian government access, encryption and an Article 28 contract for the health data, while the Indian processor is largely exempt under s. 17(1)(d).

Part II: The Digital Personal Data Protection Act 2023 and Rules 2025 (Module 6)

Part II is built from syllabus.md and the supplied Gazette texts of the Act and the Rules. Most operative provisions commence only on 13 May 2027, so each chapter states the status of what it discusses.

Chapter 9: Constitutional Basis and Legislative History

9.1 Overview

This chapter explains *Puttaswamy* and the six year legislative path to the DPDP Act.

9.2 The constitutional foundation: *Puttaswamy*

Justice K.S. Puttaswamy (Retd.) v Union of India (2017) 10 SCC 1 (nine judges, 24 August 2017). **Background:** in the Aadhaar challenge the Union denied that privacy was a fundamental right, relying on *M.P. Sharma* (eight judges, 1954) and *Kharak Singh* (six judges, 1962), so a nine judge Bench was constituted. **Held:** unanimously, privacy is protected as an intrinsic part of life and personal liberty under Article 21 and of the freedoms in Part III, and *M.P. Sharma* and *Kharak Singh* were overruled to that extent. **Reasoning:** privacy includes bodily privacy, privacy of choice and informational privacy, which data aggregation threatens acutely; the plurality required any intrusion to satisfy legality (a law), a legitimate State aim and proportionality between object and means, and called for a robust data protection regime, noting the expert committee then at work. **Later treatment:** *Puttaswamy (Aadhaar)* (2019) 1 SCC 1 (five judges, 26 September 2018) applied proportionality, upheld Aadhaar in substance, and struck down Aadhaar Act s. 57 to the extent it let private entities demand authentication under contract. **Use:** the yardstick for DPDP ss. 17(2)(a), 7(b) and (c) and 44(3).

9.3 From expert committee to enacted law

The committee under Justice B.N. Srikrishna, constituted on 31 July 2017, reported on 27 July 2018 (*A Free and Fair Digital Economy: Protecting Privacy, Empowering Indians*) with the draft Personal Data Protection Bill, 2018. The draft introduced the terms Data Fiduciary and Data Principal and followed the GDPR closely, with an independent Data Protection Authority, sensitive data, portability, a right to be forgotten and turnover based penalties;† "primarily modeled on GDPR", as syllabus.md puts it, is a common characterisation rather than an authoritative finding. The Personal Data Protection Bill, 2019 was introduced on 11 December 2019 and referred to a Joint Parliamentary Committee, whose report, presented on 16 December 2021 after 78 sittings, recommended a single Data Protection Bill, 2021 governing personal and non personal data.

Correction to syllabus.md

The JPC was chaired by Meenakshi Lekhi only until she joined the Council of Ministers on 7 July 2021; P.P. Chaudhary chaired it thereafter, including when its report was presented on 16 December 2021.

The 2019 Bill was withdrawn on 3 August 2022; a short draft DPDP Bill was published on 18 November 2022; the DPDP Bill, 2023 was introduced on 3 August 2023, passed by the Lok Sabha on 7 August and the Rajya Sabha on 9 August, and received assent on 11 August 2023 as Act No. 22 of 2023; and the Act partly commenced, and the Rules were notified, on 13 November 2025. The enacted law dropped sensitive data, portability, the right to be forgotten, objection and turnover penalties, replaced the regulator with an adjudicatory Board, left non personal data unregulated, and replaced localisation proposals with a negative list for transfers: a shorter, more permissive law that relies on consent and executive rule making.

9.4 Examination guidance

Puttaswamy makes informational privacy a fundamental right with a test of legality, legitimate aim and proportionality, and the DPDP Act is Parliament's response after two failed bills. Name both JPC chairs, do not treat the 2018 or 2019 texts as law, and remember that the 2017 judgment recognised privacy while the 2018 judgment upheld Aadhaar with limits. An answer on whether the 2023 Act retreats from the GDPR model should list the specific departures and test them against *Puttaswamy*.

Chapter 10: Preamble, Scope and Key Definitions

10.1 Overview

This chapter covers the long title, the application rules in s. 3 and the definitions in s. 2.

10.2 The long title

The Act provides for processing digital personal data "in a manner that recognises both the right of individuals to protect their personal data and the need to process such personal data for lawful purposes". It is framed as a law about the manner of processing that balances an individual right against a legitimate need to process, which explains its broad legitimate uses, its State exemptions and its duties for Data Principals; it supports both a protective purposive reading and weight for genuine processing needs.

10.3 Application: Section 3

Section 3(a) covers digital personal data processed in India, whether collected digitally or collected physically and digitised later; s. 3(b) covers processing outside India connected with offering goods or services to Data Principals in India; and s. 3(c) excludes personal or domestic processing and data made public by the Data Principal or by a person legally obliged to publish it (the Act's illustration is a blogger's own disclosures on social media). Undigitised paper records therefore fall

outside; foreign entities are caught only through offering goods or services, with no monitoring limb; and the public data exclusion removes scraped public profiles from the Act, which matters for training AI models. Section 3 commences on 13 May 2027.

10.4 The definitions in Section 2

The definitions, in force since 13 November 2025, were confirmed against the Gazette text. A **Data Principal** (s. 2(j)) is the individual to whom data relate, including a child's parents or lawful guardian and the lawful guardian of a person with disability. A **Data Fiduciary** (s. 2(i)) determines purpose and means alone or with others; a **Data Processor** (s. 2(k)) processes on a fiduciary's behalf; a **Significant Data Fiduciary** (s. 2(z)) is one notified under s. 10; a **Data Protection Officer** (s. 2(l)) is appointed by a Significant Data Fiduciary under s. 10(2)(a); and a **Consent Manager** (s. 2(g)) is a person registered with the Board acting as a single point of contact through which a Data Principal can give, manage, review and withdraw consent on an accessible, transparent and interoperable platform. **Data** (s. 2(h)) is a representation of information, facts, concepts, opinions or instructions suitable for processing; **personal data** (s. 2(t)) is any data about an individual identifiable by or in relation to it; **digital personal data** (s. 2(n)) is personal data in digital form; a **personal data breach** (s. 2(u)) is any unauthorised processing or accidental disclosure, acquisition, sharing, use, alteration, destruction or loss of access that compromises confidentiality, integrity or availability, so a misdirected email or a ransomware lockout qualifies; **processing** (s. 2(x)) is a wholly or partly automated operation on digital personal data, from collection to erasure; the **specified purpose** (s. 2(za)) is the purpose stated in the notice; and a **child** (s. 2(f)) is under eighteen. A **person** (s. 2(s)) includes the State, defined in s. 2(zb) by reference to Article 12, so the State is a fiduciary subject to the exemptions in s. 17, and the Act uses "she" and "her" for every individual (s. 2(y)). In GDPR terms the Data Principal is the data subject, the Data Fiduciary the controller and the Data Processor the processor; joint fiduciaries exist without allocation rules; the Board replaces the supervisory authority; consent and legitimate uses replace the six bases; and Consent Managers and Significant Data Fiduciaries are distinctive.

10.5 Examination guidance

The Act covers digital personal data processed in India, and processing abroad connected with offering goods or services in India, excluding personal or domestic use and data made public by the Data Principal or under a legal obligation. Do not apply it to undigitised paper, claim a monitoring limb, or misstate the clause letters (2(g), 2(i), 2(j), 2(k), 2(l), 2(t), 2(z)). A Singapore firm scraping Indian engineers' public profiles to sell analytics to US companies is probably outside both s. 3(b) and s. 3(c)(ii), unlike under GDPR Article 3(2)(b).

Chapter 11: Obligations of Data Fiduciaries

11.1 Overview

Chapter II of the Act sets the duties of Data Fiduciaries (ss. 4 to 10 with the Rules), almost all commencing on 13 May 2027.

11.2 Grounds for processing: Section 4

Processing is permitted only in accordance with the Act and for a lawful purpose, either with consent or for certain legitimate uses, and a lawful purpose is any purpose not expressly forbidden by law (s. 4). There are only two gateways and no general legitimate interests ground, and because "lawful purpose" is defined so permissively, the real protection lies in the consent and legitimate use rules.

11.3 Notice: Section 5 and Rule 3

Every request for consent must be accompanied or preceded by a notice stating the personal data and purpose, how to withdraw consent and seek grievance redressal, and how to complain to the Board (s. 5(1)); the Act's illustration is a bank's video based customer identification. For consents given before commencement, notice must be given as soon as reasonably practicable and processing may continue until withdrawal (s. 5(2)), and the notice must be available in English or any Eighth Schedule language (s. 5(3)). Rule 3 requires the notice to be understandable independently of other information; to give a fair, plain account enabling specific and informed consent, including an itemised description of the data and the specified purpose with the goods, services or uses enabled; and to give the link and means to withdraw consent as easily as it was given, exercise rights and complain to the Board.

11.4 Consent: Section 6

As Chapter 5 explains, consent must be free, specific, informed, unconditional, unambiguous, affirmative and limited to necessary data; infringing parts are invalid; requests must be clear and plain; withdrawal must be as easy as consent, with consequences borne by the Data Principal and cessation within a reasonable time; Consent Managers may be used; and the fiduciary bears the burden of proof.

11.5 Certain legitimate uses: Section 7

Processing without consent is allowed (a) for the specified purpose for which the Data Principal voluntarily provided data without objecting (a pharmacy receipt sent to a number given for that purpose; a property broker who must stop once told help is no longer needed); (b) for the State to provide prescribed subsidies, benefits, services, certificates, licences or permits where she previously consented or the data is in a notified database, under Rule 5 standards (maternity benefit data used for other benefits); (c) for State functions under law or in the interest of sovereignty, integrity or security; (d) to fulfil a legal obligation to disclose to the State; (e) to comply with Indian judgments or orders, or foreign judgments on contractual or civil claims; (f) for medical emergencies threatening life or health; (g) for treatment or health services during an epidemic or other public health threat; (h) for safety or assistance during a disaster or breakdown of public order; and (i) for employment, or to protect the employer from loss or liability (espionage, trade secrets, confidentiality), or to provide benefits sought by employees. Clauses (b) and (c) are the most open to challenge, because they allow broad State processing without express necessity or proportionality, and must be read subject to *Puttaswamy*.

11.6 General obligations: Section 8 with Rules 6 to 9

The fiduciary is responsible for all processing by it or its processors regardless of contract (s. 8(1)), may use processors only under a valid contract (s. 8(2)), must ensure completeness, accuracy and consistency where data are used for decisions about the Data Principal or disclosed to another fiduciary (s. 8(3)), and must adopt technical and organisational measures (s. 8(4)). **Security (s. 8(5), Rule 6):** reasonable safeguards, at minimum encryption, obfuscation, masking or virtual tokens; access controls; logging, monitoring and review to detect and investigate unauthorised access; continuity measures such as backups; retention of logs and data for one year unless law requires otherwise; security clauses in processor contracts; and organisational measures. **Breach (s. 8(6), Rule 7):** on becoming aware of a breach the fiduciary must tell each affected Data Principal without delay, concisely and plainly, through her account or registered contact (nature, extent and timing; likely consequences; mitigation; protective steps she can take; a contact), and tell the Board without delay (description, nature, extent, timing, location and likely impact), followed within 72 hours, or a longer period allowed on written request, by a detailed report on facts and causes, mitigation, findings about the person responsible, remedial measures and the intimations given; the Board may then direct urgent measures, inquire and penalise (s. 27(1)(a)). **Erasure (s. 8(7) and (8), Rule 8):** data must be erased, and processors made to erase, when consent is withdrawn or the purpose is no longer served, unless law requires retention (a marketplace drops a car seller's data once the car is sold; a bank keeps identity records as banking law requires). Under the Third Schedule, electronic commerce entities and social media intermediaries with at least two crore registered users in India, and online gaming intermediaries with at least fifty lakh, must erase data three years after the user's last approach or exercise of rights, or after the Rules commenced, whichever is latest, except for account access and virtual tokens, with at least 48 hours' warning; every fiduciary must keep personal data, traffic data and logs for at least one year for the Seventh Schedule purposes (Rule 8(3)). **Contact and grievances:** the DPO's or a responsible person's contact details must be published prominently and included in responses (s. 8(9), Rule 9), and an effective grievance mechanism must answer within a published period of at most ninety days (s. 8(10), Rule 14(3)).

11.7 Children and persons with disability: Section 9 with Rules 10 to 12

Verifiable consent of a parent or lawful guardian is required before processing any personal data of a child, or of a person with disability who has a lawful guardian (s. 9(1)); processing likely to harm a child's wellbeing is barred (s. 9(2)); and tracking, behavioural monitoring and targeted advertising directed at children are prohibited (s. 9(3)). Rule 10 requires due diligence that the person claiming to be the parent is an identifiable adult, using reliable identity and age details already held, details voluntarily provided, or a virtual token issued by an entity entrusted by law or government; Rule 11 requires verification that a guardian was appointed by a court, designated authority or local level committee. Rule 12 and the Fourth Schedule exempt classes such as clinical and mental health establishments and healthcare professionals (for health services), allied healthcare professionals, and educational institutions (for limited educational and safety monitoring), subject to conditions, and s. 9(5) allows an age threshold to be notified for verifiably safe processing.

Current law update: Removal of Difficulties Order, 2026

S.O. 5458(E), made under s. 43(1) on 5 October 2026 and in force from 6 October 2026, amends s. 9(1) to read "any personal data of a child or of a person with disability", making clear that verifiable consent is needed for both, and clarifies that the periodic audit in s. 10(2)(c)(ii) is a data audit. The supplied 2023 text does not show these changes, the Gazette text was not seen, and s. 43 permits such orders only within three years of commencement.

11.8 Significant Data Fiduciaries: Section 10 with Rule 13

The government may notify fiduciaries as significant considering the volume and sensitivity of data, risk to Data Principals' rights, sovereignty and integrity, electoral democracy, State security and public order (s. 10(1)). They must appoint an India based DPO who is responsible to the board and serves as grievance contact, appoint an independent data auditor, and carry out periodic impact assessments, audits and other prescribed measures (s. 10(2)). Rule 13 requires an impact assessment and audit every twelve months with a report of significant observations to the Board, due diligence that algorithmic software does not endanger Data Principals' rights, and compliance with any committee specified restriction keeping data and traffic data in India; the algorithmic duty is the closest Indian law comes to regulating automated decisions.

11.9 Compliance in practice

To be ready for 13 May 2027, a fiduciary should map every purpose to consent or a s. 7 use; redesign stand alone, itemised, multilingual notices; build unbundled consent flows with easy withdrawal; insert security clauses in processor contracts; implement encryption or masking, access control, logging, backups and one year retention; prepare a breach plan meeting the "without delay" and 72 hour duties; adopt retention schedules, including the three year rule and 48 hour warning for large platforms; publish contact details and a grievance process that answers within ninety days; implement verifiable parental consent and stop tracking and targeted advertising of under eighteens; and, if notified as significant, appoint an India based DPO and auditor, carry out annual assessments and audits, and verify its algorithms.

11.10 Examination guidance

A fiduciary needs a lawful purpose and consent or a legitimate use, must give notice, and remains responsible for security, breach intimation, accuracy, erasure and grievances, with added duties for children and Significant Data Fiduciaries. Do not invent legitimate interests, limit breach intimation to serious breaches, set the child's age at sixteen, or forget the 13 May 2027 start. An education platform whose student data are breached must intimate each parent and the Board, file the 72 hour report and show verifiable parental consent, and faces penalties of up to 250 crore rupees (safeguards), 200 crore rupees (intimation) and 200 crore rupees (children's obligations).

Chapter 12: Rights and Duties of Data Principals

12.1 Overview

Chapter III of the Act gives four rights and imposes five duties; this chapter also covers Consent Managers and the rights the Act omits.

12.2 Right to access information: Section 11

A Data Principal may obtain, from a fiduciary to which she gave consent (including deemed consent under s. 7(a)), a summary of the personal data and processing activities, the identities of all fiduciaries and processors with whom data were shared with a description of what was shared, and other prescribed information (s. 11(1)). The recipients and further information need not be disclosed for sharing with fiduciaries authorised by law, on written request, for preventing, detecting or investigating offences or cyber incidents or for prosecution (s. 11(2)). The right is narrower than GDPR access: a summary rather than a copy, and only for consent and voluntary provision.

12.3 Right to correction and erasure: Section 12

For consent based and s. 7(a) processing, she may obtain correction, completion, updating and erasure in accordance with law (s. 12(1)); the fiduciary must correct inaccurate or misleading data and complete and update data (s. 12(2)), and must erase on request unless retention is necessary for the specified purpose or for legal compliance (s. 12(3)). For the State, s. 17(4) disapplies s. 12(3), and s. 12(2) where no decision affecting her is made.

12.4 Right of grievance redressal: Section 13

She is entitled to readily available grievance redressal from a fiduciary or Consent Manager and a response within the prescribed period (at most ninety days under Rule 14(3)), and must exhaust this remedy before approaching the Board, unlike the GDPR's direct complaint to a supervisory authority.

12.5 Right to nominate: Section 14

She may nominate an individual to exercise her rights on her death or incapacity, meaning inability to exercise them because of unsoundness of mind or infirmity of body; a nominee could, for example, seek erasure of a deceased person's accounts. The GDPR leaves the deceased to national law (Recital 27).

12.6 Duties of Data Principals: Section 15

She must comply with applicable laws; not impersonate another person when providing data; not suppress material information when providing data for State documents, unique identifiers, proof of identity or address; not file false or frivolous grievances or complaints; and furnish only verifiably authentic information when seeking correction or erasure. Breach can attract a penalty of up to 10,000 rupees (Schedule, item 5). Critics argue that the duty not to complain frivolously deters

genuine complaints, while supporters say it protects the Board and the integrity of State identity records.

12.7 Consent Managers

A Consent Manager (s. 2(g)) is a Board registered single point of contact on an accessible, transparent and interoperable platform; it is accountable to and acts for the Data Principal (s. 6(8)) and must be registered on prescribed conditions (s. 6(9)). Under Rule 4 and Part A of the First Schedule, it must be an Indian company with adequate technical, operational and financial capacity, sound finances and management, a net worth of at least two crore rupees, adequate business prospects and capital, directors and managers of integrity, constitutional documents securing its obligations (amendable only with the Board's approval), and operations in Data Principals' interests; Part B sets continuing obligations. Rule 4, s. 6(9) and s. 27(1)(d) commence on 13 November 2026. The model resembles the RBI's account aggregator framework; † the GDPR has no equivalent.

12.8 Rights the DPDP Act omits

The Act omits portability and automated decision rights, as syllabus.md notes, and also objection and restriction, although the 2018 draft and the 2019 Bill contained portability and a right to be forgotten.† A person refused credit or a job by an algorithm has no right to human review, to contest or to an explanation, only the accuracy duty in s. 8(3), the summary access right and the grievance route, and the absence of portability weakens competition. The DPDP Act has nomination, compulsory internal grievances, duties and Consent Managers, which the GDPR lacks, but lacks portability, objection, restriction and Article 22 protection.

12.9 Examination guidance

Data Principals have access to a summary and recipients, correction and erasure, grievance redressal (exhausted first) and nomination, owe duties under s. 15, and lack portability, objection, restriction and automated decision rights. Do not describe access as a copy, skip the internal grievance step, or treat Consent Managers as operating before 13 November 2026. A person rejected by an automated card scoring system may seek a summary, correction and redress under the DPDP Act, but would have Article 22 rights under the GDPR.

Chapter 13: Transfers, Exemptions, the Board, Penalties and Implementation

13.1 Overview

This chapter covers transfers, exemptions, the Board, penalties, commencement, s. 44 and the litigation, and the interim role of s. 43A.

13.2 Transfer of personal data outside India: Section 16

The government may restrict transfers to notified countries or territories (s. 16(1)); stricter transfer laws remain applicable (s. 16(2)); Rule 15 adds conditions on making data available to foreign

States or entities under their control; and Rule 13(4) allows committee specified data of Significant Data Fiduciaries to be kept in India. All commence on 13 May 2027; Chapter 8 compares the GDPR.

13.3 Exemptions: Section 17

Partial exemption (s. 17(1)): Chapter II (except s. 8(1) and (5)), Chapter III and s. 16 do not apply to processing necessary to enforce legal rights or claims; by courts, tribunals and regulators performing judicial, quasi judicial, regulatory or supervisory functions; for preventing, detecting, investigating or prosecuting offences; for processing in India of non residents' data under contracts with foreign persons; for approved mergers, demergers and arrangements; and for ascertaining a loan defaulter's financial position. The overarching responsibility and security safeguards still apply. **Total exemption (s. 17(2)):** the whole Act does not apply to processing by State instrumentalities notified in the interests of sovereignty and integrity, security, foreign relations, public order or preventing incitement (s. 17(2)(a)), or to research, archiving and statistics that take no decision about a specific Data Principal and meet Rule 16 and Second Schedule standards (s. 17(2)(b)). **Other powers:** notified fiduciaries, including startups, may be exempted from ss. 5, 8(3), 8(7), 10 and 11 (s. 17(3)); for the State, ss. 8(7) and 12(3) do not apply, and s. 12(2) applies only where decisions affect the Data Principal (s. 17(4)); and within five years of commencement the government may disapply any provision for notified fiduciaries for a period (s. 17(5)). Section 17(2)(a) exempts agencies by executive notification without any statutory necessity, proportionality, independent authorisation or oversight, exactly the safeguards required by *Big Brother Watch* and arguably by *Puttaswamy*, and it is under challenge.

13.4 The Data Protection Board of India

Establishment: the Board is a body corporate established by notification (s. 18) with a Chairperson and notified Members (s. 19); it was established by G.S.R. 844(E) from 13 November 2025, G.S.R. 845(E) reportedly providing four Members,† and it must act independently and, as far as practicable, as a digital office (s. 28(1)). **Functions (s. 27):** on breach intimation it may direct urgent remedial measures and inquire and penalise; it acts on Data Principals' complaints, government references and court directions against fiduciaries and Consent Managers, on breaches of Consent Manager registration, and on references about intermediaries defying blocking directions; and it may issue, modify or withdraw directions after a hearing. **Procedure (s. 28):** it decides whether there are sufficient grounds to proceed (recording reasons for closing a matter), follows natural justice, has civil court powers to summon, take evidence and inspect, may issue interim orders, and must not seize equipment in a way that disrupts daily functioning. **Appeals and alternatives:** appeals lie to the TDSAT within sixty days, to be decided within six months if possible (s. 29), with orders executable as civil decrees (s. 30); the Board may direct mediation (s. 31) and accept voluntary undertakings that bar proceedings unless breached (s. 32). **Penalties (s. 33):** imposed for significant breaches after a hearing, considering nature, gravity and duration; the type of data; repetition; gain made or loss avoided; mitigation and its timeliness; proportionality and deterrence; and likely impact; and credited to the Consolidated Fund (s. 34). **Schedule maxima:** 250 crore rupees for failing to take reasonable security safeguards (s. 8(5)); 200 crore rupees each for failing to intimate a breach (s. 8(6)) and breaching children's obligations (s. 9); 150 crore rupees for Significant

Data Fiduciary obligations (s. 10); 10,000 rupees for Data Principals' duties (s. 15); up to the original amount for breach of a voluntary undertaking; and 50 crore rupees for any other breach. **Other provisions:** after penalties in two or more instances and a Board reference advising it, the government may, after a hearing, direct blocking of public access to the fiduciary's services in India (s. 37); the Act is additional to other laws but prevails in a conflict (s. 38); civil courts are barred (s. 39); and difficulty removal orders may be made within three years (s. 43). Penalties go to the State, not the victim, and the Act provides no compensation, so once s. 43A is omitted a victim of negligent leakage must rely on tort or contract.

13.5 Commencement of the Act and the Rules

Phase one (13 November 2025): G.S.R. 843(E) brought into force ss. 1(2), 2, 18 to 26, 35, 38 to 43, 44(1) and 44(3) (definitions, the Board, good faith protection, consistency, jurisdiction, rule making, removal of difficulties, and the TRAI and RTI amendments), and Rule 1 of the supplied Rules brought Rules 1, 2 and 17 to 21 into force (definitions and the Board). **Phase two (13 November 2026):** ss. 6(9) and 27(1)(d) and Rule 4 (Consent Managers). **Phase three (13 May 2027):** ss. 3 to 5, 6(1) to (8) and (10), 7 to 17, the rest of s. 27, ss. 28 to 34, 36, 37 and 44(2), and Rules 3, 5 to 16, 22 and 23, so fiduciaries' duties, rights, transfers, exemptions, inquiries, penalties, appeals, blocking and the omission of s. 43A all start then. A reported 2026 proposal to shorten the transition was not notified.† The Rules map onto the Act thus: Rule 3 (notice, s. 5); Rule 4 (Consent Managers, ss. 2(g) and 6); Rule 5 (State processing, s. 7(b)); Rules 6 to 9 (security, breach, retention and contact details, s. 8); Rules 10 to 12 (children and disability, s. 9); Rule 13 (Significant Data Fiduciaries, s. 10); Rule 14 (rights and the grievance period, ss. 11 to 14); Rule 15 (transfers, s. 16); Rule 16 (research exemption, s. 17(2)(b)); Rules 17 to 21 (the Board); Rule 22 (appeals, s. 29); and Rule 23 with the Seventh Schedule (calls for information, s. 36).

13.6 Section 44 and the pending litigation

Section 44(1) makes the TDSAT the appellate tribunal (in force). Section 44(2) omits IT Act s. 43A, adds the DPDP Act to the proviso to IT Act s. 81, and omits s. 87(2)(ob) (from 13 May 2027). Section 44(3) substitutes RTI Act s. 8(1)(j) so that it exempts "information which relates to personal information", removing the old qualifications about public activity, unwarranted invasion of privacy and the larger public interest, although the general override in RTI s. 8(2) survives (in force since 13 November 2025).

Under judicial consideration

Venkatesh Nayak v Union of India, W.P.(C) No. 177 of 2026, with connected petitions by journalists and publishers, challenges ss. 17(1)(c), 17(2), 33(1), 36 and 44(3) and Rules 17 and 23(2); on 16 February 2026 Surya Kant CJI and Joymalya Bagchi and Vipul M. Pancholi JJ issued notice, declined an interim stay and referred the matter to a larger Bench. No Board appointments appear on the official record reviewed; in October 2026 the Kerala High Court, in *C R Neelakandan v Union of India* (WP(PIL) No. 15 of 2026), recorded the Union's statement that the Board was constituted but not yet functional and would be made functional within eight weeks.† Reports of earlier appointments are unsupported.

13.7 Section 43A until 13 May 2027

Until that date, a body corporate negligent in maintaining reasonable security practices for sensitive personal data, which causes wrongful loss or gain, must compensate the person affected through the adjudicating officer (IT Act ss. 43A and 46; SPDI Rules 2011). After it, the Board penalises without compensating.

13.8 Examination guidance

Transfers are free unless restricted; s. 17 grants wide partial and total exemptions; the Board adjudicates and fines up to fixed caps, with appeals to the TDSAT; and most of the Act starts on 13 May 2027. Do not call the Act fully in force, credit the Board with power to award compensation, link penalties to turnover, or claim that s. 44(3) is stayed. Analytical questions test s. 17(2)(a) against *Puttaswamy* and the criticism that the Act punishes but does not compensate.

Part III: Cyber Contraventions and Cyber Crimes (Module 7)

Part III follows CyberCrimes.pdf: the foundational classes (L1 and L2, self study), the civil contraventions in s. 43 and the offences in ss. 65 to 67B of the Information Technology Act, 2000, with s. 66F as the class focus (L3). No IT Act bare text was supplied, so read India Code before quoting. Since 1 July 2024 the Bharatiya Nyaya Sanhita (BNS), Bharatiya Nagarik Suraksha Sanhita (BNSS) and Bharatiya Sakshya Adhiniyam (BSA) have replaced the IPC, CrPC and Evidence Act, and IPC references on the slides are updated.

Chapter 14: Cybercrime: Concepts and Foundations

14.1 Overview

This chapter explains why cybercrime defeats ordinary criminal law, how it is defined and classified, the Budapest Convention, the two tracks of the IT Act, and the definitions and technology used later.

14.2 Why cybercrime is different

Slide 2 lists five features: **scale** (one person can attack millions of targets cheaply); **accessibility** (cheap tools and tutorials remove the skill barrier); **anonymity** (false identities, proxies, encryption and compromised machines frustrate attribution); **portability and transferability** (data move instantly and are copied without loss, straining concepts such as theft); and a **global, transboundary nature** (offender, victim, servers and evidence in different countries, raising jurisdiction and cooperation problems).

14.3 Why traditional criminal law failed: *R v Gold*

In *R v Gold* (House of Lords, 1988),† the defendants used another customer's identification number and password, obtained by a trick, to access British Telecom's Prestel service, including a royal mailbox. With no unauthorised access offence then available, they were charged with making a false instrument under section 1 of the Forgery and Counterfeiting Act 1981. The House upheld their acquittal, Lord Brandon calling the prosecution a "Procrustean attempt" to force the facts into an unsuitable statute: dishonestly gaining access to a data bank by a trick was not a crime, and making it one was for Parliament (slide 3). The United States enacted a computer fraud law in 1984, expanded in 1986 as the Computer Fraud and Abuse Act; the United Kingdom enacted the Computer Misuse Act, which the slide dates to 1991 but which is usually cited as the Computer Misuse Act 1990.† India responded with the IT Act, 2000, primarily recognising electronic records and transactions, and the IT (Amendment) Act, 2008, in force from 27 October 2009, which added most offences in ss. 66A to 67C.

14.4 Defining cybercrime

"Cybercrime" is undefined and used interchangeably with computer, high tech, digital, electronic and technology enabled crime (slide 4). It is classified by the computer's role: as the **target** (hacking, malware, denial of service, usually needing cyber specific offences such as ss. 43 and 66); as a **tool** for existing crimes (child abuse material, harassment, fraud, often also chargeable under general law); and as **incidental** to a crime but holding evidence of it (messages on a murder victim's phone), which raises evidence rather than substantive questions.

14.5 The Council of Europe Convention on Cybercrime

The Budapest Convention, the first multilateral cybercrime treaty, covers substantive law, procedure and international cooperation (slide 5) and groups offences into four categories: offences against the confidentiality, integrity and availability of data and systems (illegal access, interception, data interference); computer related forgery and fraud; content related offences (child pornography); and copyright infringement. The slide records 64 parties (check the current count); India is not a party.† The categories map onto IT Act ss. 43 and 66, ss. 66C and 66D, ss. 67 to 67B, and the Copyright Act.

14.6 Trends shown in class

Slide 6's NCRB 2017 infographic records a 77 per cent rise in cybercrime cases in 2017 over 2016, led by Uttar Pradesh, Maharashtra and Karnataka, and a near 50 per cent rise in offences against the State between 2015 and 2017. The figures are dated, so cite the latest NCRB Crime in India; recent digital arrest complaint data appear in Chapter 17.

14.7 Contraventions and offences under the IT Act

Slide 7 contrasts the two tracks. **Contraventions** (Chapter IX: s. 43(a) to (j), ss. 43A, 44 and 45) cover unauthorised access and interference without a mental element (except s. 43(j)); they are civil, decided by an adjudicating officer or, above the pecuniary limit, a civil court (s. 46), investigated by the Controller or an authorised officer (s. 28), remedied by compensation or penalties, and compoundable (s. 63). **Offences** (Chapter XI: ss. 65 to 74, with ss. 75 to 78) require intention, knowledge, dishonesty or fraud; they are criminal, tried by criminal courts according to s. 77B, investigated by an officer not below the rank of Inspector (s. 78), punished by imprisonment, fine or both, and compoundable only within s. 77A.

14.8 Key definitions in Section 2(1)

(Clause letters should be checked against India Code.) **Access** (s. 2(1)(a)) is gaining entry into, instructing or communicating with the logical, arithmetical or memory function resources of a computer, system or network, so sending instructions counts. A **computer** (s. 2(1)(i)) is any electronic, magnetic, optical or other high speed data processing device performing logical, arithmetic and memory functions. A **computer network** (s. 2(1)(j)) is the interconnection of computers or communication devices by any means. A **computer resource** (s. 2(1)(k)) is a computer, communication device, system, network, data, database or software. A **computer system** (s. 2(1)(l)) is a device or devices with programs, instructions and data performing logic, storage, retrieval and communica-

tion functions. **Data** (s. 2(1)(o)) is information, knowledge, facts, concepts or instructions in formalised form intended for computer processing. An **electronic record** (s. 2(1)(t)) is data, a record, an image or sound stored, received or sent electronically, or microfilm or computer generated microfiche. **Information** (s. 2(1)(v)) includes data, messages, text, images, sound, voice, codes, programs, software and databases.

14.9 A technical primer

Hacking (unauthorised access by stolen or guessed credentials or exploited vulnerabilities) engages s. 43(a) and s. 66. **Malware** (viruses attaching to files, self spreading worms, ransomware encrypting data for payment) engages s. 43(c), (d) and (i), s. 66, and s. 66F with terrorist intent. **Denial of service** (flooding a site with traffic, "distributed" when many machines are used) engages s. 43(e) and (f) and s. 66. **Phishing and vishing** (messages or calls impersonating trusted bodies) engage ss. 66C and 66D. **SIM swapping** (moving a number to a new SIM to capture one time passwords) engages ss. 43, 66C and 66D. **Skimming** (copying card data at ATMs) engages ss. 43(b) and 66C, and s. 66B for stolen devices. **Image abuse** engages ss. 66E, 67 and 67A. **Authentication** confirms who a user is and **authorisation** decides what she may do, and many "unauthorised access" disputes are really about authorisation. **Cybersecurity** protects systems, while **cybercrime** punishes misuse.

14.10 Examination guidance

Cybercrime law exists because offences built around tangible property and documents could not capture computer misuse (*R v Gold*), and the IT Act responds with civil contraventions and criminal offences. Do not treat "cybercrime" as a defined term, confuse s. 43 with s. 66, or cite the 2017 statistics as current. Classify crimes by the computer's role and compare the tracks using slide 7.

Chapter 15: Civil Contraventions and Adjudication: Sections 43 and 43A

15.1 Overview

Section 43 underpins Module 7, because s. 66 makes its contraventions criminal when done dishonestly or fraudulently; this chapter covers its clauses, unauthorised access, adjudication, s. 43A, the classroom problems and Aaron Swartz.

15.2 Section 43: structure and clauses

Section 43 applies where any person, "without permission of the owner or any other person who is in charge of a computer, computer system or computer network", does any of ten acts, and makes him liable to pay damages by way of compensation to the person affected, without any cap since 2008 (previously one crore rupees). Liability is civil and needs no mental element except under clause (j). **(a)** (slide 8): accessing or securing access to a computer, system, network or, since 2008, computer resource; lack of authorisation is the key ingredient, which requires identifying the owner or person in charge. **(b)** (slide 9): downloading, copying or extracting data, databases or information, including from removable storage, the clause for data theft by employees. **(c)** (slide 10):

introducing a computer contaminant or virus (Explanations (i) and (iii)). **(d)**: damaging a computer, system, network, data, database or program, damage meaning to destroy, alter, delete, add, modify or rearrange (Explanation (iv)); slide 10's example is a student who changes a placement cell's email password, making the account unusable for days and costing candidates jobs. **(e)** (slide 11): disrupting a system, an unexpected deviation from normal operation. **(f)**: denying access to authorised persons, as in denial of service attacks. **(g)** (slide 12): assisting any person to gain access in contravention of the Act, such as by sharing passwords, a clause of broad sweep. **(h)**: charging services used by one person to another's account by tampering, aimed at misuse of access codes, IDs and passwords. **(i)** (2008): destroying, deleting or altering information or diminishing its value or utility, the wording of the old s. 66 "hacking" offence. **(j)** (2008, slide 13): stealing, concealing, destroying or altering source code with intent to cause damage, the only "premeditated" contravention.

15.3 What makes access unauthorised

In *DPP v Bignell* (Divisional Court, 1997), police officers who used the Police National Computer for private purposes did not commit unauthorised access because they were authorised to access that data, the classic case of unauthorised use by authorised users.† In *R v Bow Street Metropolitan Stipendiary Magistrate, ex parte Government of the United States of America* (the *Allison* case, House of Lords, 1999), a credit card company employee accessed accounts outside her assignment; access is unauthorised if the person is not entitled to control access of the kind in question and lacks consent from someone who is (slide 8).† Authority is thus measured against particular data and kinds of access, and the scope of the owner's "permission" under s. 43 defines liability. Both cases are persuasive only.

15.4 Adjudication and appeals

Claims up to five crore rupees go to the adjudicating officer appointed under s. 46 (typically senior State officers),† who has civil court powers and must consider the gain or unfair advantage made, the loss caused and any repetition (s. 47); larger claims go to civil courts. Appeals lie to the Appellate Tribunal, now the TDSAT after the Finance Act, 2017 (s. 57), and then to the High Court on fact or law (s. 62); s. 61 bars civil courts from matters within the officer's competence; the Controller may investigate (s. 28); and contraventions may be compounded (s. 63). The Jan Vishwas Act, 2023 adjusted the wording of s. 46 from 30 November 2023 but did not change s. 43.

15.5 Section 43A: compensation for failure to protect data

A body corporate (any company, firm, sole proprietorship or association in commercial or professional activity) that possesses, deals with or handles sensitive personal data or information in a computer resource it owns, controls or operates, and is negligent in implementing and maintaining reasonable security practices and procedures (as agreed, as specified by law, or as prescribed), thereby causing wrongful loss or gain, must compensate the person affected. The SPDI Rules 2011 define sensitive data (passwords, financial information, health conditions, sexual orientation, medical records, biometrics), require a privacy policy and consent, and treat IS/ISO/IEC 27001 or an ap-

proved code as reasonable practice.† Reported adjudication orders against banks for phishing losses (Tamil Nadu, 2010; Maharashtra, 2013) are illustrations only.†

> **Current law update**
>
> DPDP s. 44(2)(a) omits s. 43A from 13 May 2027. Until then, s. 43A and the SPDI Rules govern private sector data security; afterwards the Board penalises without compensating. Section 43 is unaffected.

15.6 The classroom problems

Problem I (slide 15). Ram, a former SDTv web producer who left after a dispute in October 2019, shared a Tribune Co. server's credentials in an Anonymous chat room and encouraged their use, and "Sharpie" used them to alter a news story. Ram's disclosure is assistance to facilitate unauthorised access (s. 43(g)) and, if aimed at causing his former employer wrongful loss, is dishonest, so s. 66 also applies, with possible abetment liability. Sharpie accessed without permission (s. 43(a)) and altered information (s. 43(d) and (i)), dishonestly given his purpose, so s. 66 applies to him too. Both owe compensation, and s. 66F does not arise without terrorist intent. **Problem II (slide 16).** Ajay, an IndiaBulls programmer, downloaded proprietary trading code before leaving and claimed he meant to copy only open source files. Copying without permission is a s. 43(b) contravention whatever his intent, so inadvertence is no answer to the civil claim; but s. 43(j) and s. 66 need intent to damage or dishonesty, which genuine inadvertence negates. Section 65 needs code required by law to be kept, so it is unlikely to apply, while breach of confidence and copyright claims remain.

15.7 The case of Aaron Swartz

Slide 17 recounts the CFAA prosecution of Aaron Swartz for downloading millions of JSTOR articles through MIT's network, the criticism that the CFAA lets terms of service or codes of conduct define felonies, and his death by suicide while facing up to 35 years. The Indian question is the same: whether breach of contractual terms makes access "without permission" under ss. 43 and 66. No settled Indian authority was located, and the better view reserves criminal liability for genuine dishonesty or fraud, leaving contractual breaches to the civil track.

15.8 Examination guidance

Section 43 imposes uncapped civil liability for ten acts done without permission, with no mental element except under clause (j); claims up to five crore rupees go to the adjudicating officer, then the TDSAT and the High Court. Do not require intent for every clause, cite the old one crore cap, forget that s. 43A lasts until 13 May 2027, or send large claims to the officer. An employee who changes a server password before resigning and locks everyone out commits contraventions under s. 43(d), (f) and (i), and s. 66 if dishonest.

Chapter 16: Source Code Tampering and Computer Related Offences: Sections 65, 66 and 66B

16.1 Overview

This chapter covers ss. 65, 66 and 66B, and the overlap between the IT Act and the general criminal law.

16.2 Section 65: tampering with computer source documents

Whoever knowingly or intentionally conceals, destroys or alters, or causes another to conceal, destroy or alter, computer source code used for a computer, programme, system or network, when the code is required to be kept or maintained by law, is punishable with up to three years, or a fine up to two lakh rupees, or both; "computer source code" means the listing of programmes, computer commands, design and layout, and programme analysis of a computer resource in any form. The ingredients are knowledge or intention; concealment, destruction or alteration; source code used for a computer resource; and a legal requirement to keep that code, the ingredient most often missed.

Syed Asifuddin v State of Andhra Pradesh (2005 Cri LJ 4314; 2006 (1) ALD (Cri) 96; AP High Court, V.V.S. Rao J, 29 July 2005; slide 18 says 2006). **Facts:** Tata Indicom employees allegedly reprogrammed the 32 bit Electronic Serial Numbers of Reliance's subsidised, network locked handsets so that they worked on Tata's network; the FIR invoked IPC ss. 409, 420 and 120B, IT Act s. 65 and Copyright Act s. 63, and quashing was sought under s. 482 CrPC. **Held:** prima facie, the ESN and the System Identification Code that each provider maintains and assigns to instruments are computer source code, so altering the ESN attracts s. 65; the proceedings under s. 65 and Copyright Act s. 63 continued, while the IPC charges were reportedly quashed.† **Significance:** "source code" is read broadly to include device identifiers.

16.3 Section 66: computer related offences

If any person dishonestly or fraudulently does any act referred to in s. 43, he is punishable with up to three years, or a fine up to five lakh rupees, or both. "Dishonestly" (intending wrongful gain or loss) and "fraudulently" (intending to defraud) were defined in IPC ss. 24 and 25, now BNS ss. 2(7) and 2(9), and references to repealed provisions are ordinarily read as references to their re enactments under s. 8 of the General Clauses Act, 1897.† Slide 14 shows that ss. 43 and 66 cover the same conduct and differ only in the mental element: s. 43 is a civil contravention leading to compensation, while s. 66 is a cognizable, bailable offence. Analysis therefore begins with the relevant s. 43 clause and asks whether dishonesty or fraud is proved. The pre 2009 s. 66 created a "hacking" offence close to today's s. 43(i).

16.4 Section 66B: stolen computer resources and devices

Whoever dishonestly receives or retains a stolen computer resource or communication device, knowing or having reason to believe it to be stolen, is punishable with up to three years, or a fine up to one lakh rupees, or both; slide 19 links it to IPC s. 411, now BNS s. 317.† Buying a stolen iPhone is

the direct case; SIM swapping or cloning mainly engages ss. 66C, 66D and 43 with 66, and s. 66B only where a stolen SIM or device is received; ATM skimming involves s. 43(b) for copying data and s. 66C for using it, with s. 66B where stolen cards or skimmers are received.

16.5 Special law or general law?

Step one: in *Sharat Babu Digumarti* (2017) 2 SCC 18, the Supreme Court held that where electronic obscene material falls under s. 67, IPC s. 292 cannot be invoked for the same act, because the IT Act provisions with s. 81 form a special scheme (Chapter 19). **Step two:** in *Gagan Harsh Sharma v State of Maharashtra* (Bombay High Court, Ranjit More and Bharati Dangre JJ, 26 October 2018; 2018 SCC OnLine Bom 17705), employees accused of stealing healthcare software and data faced IPC ss. 408 and 420, which are non bailable and not freely compoundable, and IT Act ss. 43, 65 and 66, which are bailable and compoundable; the Court quashed the IPC charges because the IT Act covered the conduct, and a special leave petition was dismissed in limine. **Step three:** another Division Bench disagreed and referred the question in *Awadhesh Kumar Parasnath Pathak v State of Maharashtra* (Criminal Application No. 2562 of 2019, Aurangabad Bench), and the Full Bench held that the general law is not excluded where an ingredient of the general offence is missing from the special provision, such as deception in cheating, which s. 43 read with s. 66 does not require.

> **Current position**
>
> In the Bombay High Court, compare ingredients and allow the general offence alongside the IT Act where it has an additional ingredient; *Sharat Babu* still governs where both provisions cover the same conduct. The question is unsettled nationally and must now be answered against the BNS.

16.6 Examination guidance

Section 65 needs knowing or intentional tampering with source code that the law requires to be kept; s. 66 is a s. 43 act plus dishonesty or fraud; s. 66B covers dishonestly received or retained stolen devices. Do not omit the legal requirement in s. 65, treat s. 66 as needing a separate act, or claim that the IT Act always excludes the general law. A repair shop that buys suspected stolen phones and changes their identifiers commits s. 66B, s. 65 (on the *Syed Asifuddin* reasoning, if the codes must be maintained by law) and ss. 43 and 66, with any BNS charge depending on a comparison of ingredients.

Chapter 17: Identity Theft, Personation and Privacy Violation: Sections 66C, 66D and 66E

17.1 Overview

This chapter covers identity theft (s. 66C), cheating by personation (s. 66D), digital arrest scams and privacy violation (s. 66E).

17.2 Identity in digital form

Slide 20 explains that identity now includes a virtual identity of electronic signatures, passwords and biometric details, and whoever holds the credentials can act as the person, which is why credential misuse underlies most online fraud.

17.3 Sections 66C and 66D

Section 66C: whoever fraudulently or dishonestly makes use of another person's electronic signature, password or other unique identification feature is punishable with up to three years and a fine up to one lakh rupees; the credential must be used, not merely held. **Section 66D:** whoever, by means of a communication device or computer resource, cheats by personation (pretending to be another, substituting persons or misrepresenting identity, with deception and dishonest inducement) is punishable with up to three years and a fine up to one lakh rupees; it covers phishing, fake profiles and impersonation of officials by video call. The offences differ: s. 66C concerns using someone's credential, s. 66D pretending to be someone in order to cheat. A fake bank caller who obtains a transfer commits s. 66D, and if she then logs in with a captured one time password she also commits s. 66C. Cheating by personation in the general law is now BNS s. 319.†

17.4 Classroom illustrations

Hari (slide 20, hypothetical): a Bengaluru investment banker's unused credit card was misused after his records were stolen; using his card credentials is s. 66C, and charging purchases to his account by manipulating a system is s. 43(h), and s. 66 if dishonest. **The Bank NSP case (slide 21, 2013):** a bank management trainee, after a broken engagement, created false email identities (one resembling a bar association's name) and used the bank's computers to email her former fiancé's foreign clients, costing his company business; the company sued the bank, raising misuse of an employer's systems and the employer's liability, and no reported judgment was located. † ***NASSCOM v Ajay Sood*** **(Delhi High Court, 2005):** a placement agency sent emails in NASSCOM's name to harvest personal data for headhunting; the case is usually cited as recognising phishing as passing off,† and although civil, it is the paradigm of the personation punished by s. 66D.

17.5 Digital arrest scams

Slide 22 describes fraudsters who impersonate police, enforcement agencies or judges on video calls, show forged orders, threaten arrest and seizure, and keep victims on calls for days. The Supreme Court took suo motu cognisance after a senior citizen couple from Ambala lost 1.05 crore rupees between 3 and 16 September 2025 to impostors posing as CBI, Enforcement Directorate and Supreme Court officials.

Current law update: ***In Re: Victims of Digital Arrest Related to Forged Documents***

Cognisance was taken on 17 October 2025. On 1 December 2025, Surya Kant CJI and Joymalya Bagchi J directed the CBI to investigate digital arrest scams first, with other cybercrimes to follow, and sought the States' consent. On 29 July 2026 the Court urged the Union to define "digital arrest" as a standalone offence, and on 4 August 2026 Surya Kant CJI, Joymalya Bagchi and V. Mohana JJ directed the RBI to frame a standard operating procedure on mule accounts and asked an inter departmental committee to examine shared liability and victim compensation. Digital arrest complaints on the National Cyber Crime Reporting Portal fell from 1,23,672 (2024) to 58,249 (2025) and 16,377 (to 30 June 2026). The proceedings continue; prosecutions use s. 66D (and s. 66C) with the BNS provisions on cheating, extortion, personation of public servants and forgery.†

17.6 Section 66E: violation of privacy

Whoever intentionally or knowingly captures, publishes or transmits the image of a private area of any person without consent, under circumstances violating privacy, is punishable with up to three years, or a fine up to two lakh rupees, or both (slide 23). The Explanation defines **transmit** (electronically sending an image intending it to be viewed), **capture** (videotaping, photographing, filming or recording by any means), **private area** (naked or undergarment clad genitals, pubic area, buttocks or female breast), **publishes** (reproducing in print or electronic form and making available to the public) and **circumstances violating privacy** (a reasonable expectation of being able to disrobe privately without being captured, or that the private area would not be publicly visible, in a public or private place). The section is gender neutral. The classroom events (slides 23 to 27) are: women advocates reportedly filmed in a Delhi High Court restroom in 2013, which led to *Binu Tamta v High Court of Delhi* under Article 32 and the Supreme Court's Gender Sensitisation and Sexual Harassment of Women Regulations, 2013;† news reports of filmed and circulated assaults; a camera aimed at a store trial room in Goa (2015), leading to charge sheets under IPC ss. 354, 354C and 509 and IT Act s. 66E; and an IT professional in Kerala arrested in 2023 for voyeurism while wearing a burqa, booked under IPC ss. 354C and 419 and s. 66E.

17.7 Voyeurism and stalking in the general criminal law

Slide 26 reproduces IPC ss. 354C and 354D, inserted by the Criminal Law (Amendment) Act, 2013. Section 354C punished a man who watches or captures a woman engaged in a private act where she expects not to be observed, or disseminates such an image (one to three years with fine; three to seven years on repetition); a private act includes exposure of genitals, posterior, breasts or underwear, using a lavatory, or a sexual act not ordinarily done in public, and consent to capture is not consent to dissemination. Section 354D punished a man who repeatedly follows or contacts a woman despite clear disinterest, or monitors her internet, email or electronic communications (up to three years with fine; five on repetition), excepting crime prevention by authorised persons, acts under law, and reasonable and justified conduct. These are now BNS ss. 77 and 78.† Compared with s. 66E: s. 66E is gender neutral, limited to images of private areas and without a minimum sentence, whereas voyeurism protects women, covers watching private acts and carries a one year minimum; s. 66E is not compoundable when committed against a woman or child (s. 77A); and the two are usually charged together.

17.8 Examination guidance

Section 66C covers misuse of another's credentials, s. 66D cheating by personation through computers or devices, and s. 66E image based privacy violation. Do not use s. 66C where no credential was used, confine s. 66E to women, cite IPC ss. 354C and 354D as current, or call digital arrest a statutory offence. A fake CBI officer who keeps a retiree on a video call and extracts her savings commits s. 66D (and s. 66C if credentials were used), with BNS forgery and extortion; the case is investigated by an officer not below Inspector (s. 78), possibly the CBI, and should be reported at once on the National Cyber Crime Reporting Portal.

Chapter 18: Cyber Terrorism: Section 66F (Class Focus)

18.1 Overview

This chapter covers the two limbs of s. 66F, critical information infrastructure, procedure, the classroom examples, the overlap with anti terrorism law and the main criticisms.

18.2 The text and structure of Section 66F

Limb (A) (slide 28) applies to whoever, with intent to threaten the unity, integrity, security or sovereignty of India or to strike terror in the people or any section of them, (i) denies access to authorised persons, (ii) attempts to penetrate or accesses a computer resource without authorisation or exceeding authorised access, or (iii) introduces a computer contaminant, and thereby causes or is likely to cause death or injury, damage to or destruction of property, disruption of supplies or services essential to the life of the community (or knows such disruption to be likely), or adverse effects on critical information infrastructure specified under s. 70. Its elements are a specific terrorist intent, one of three cyber acts, and serious actual or likely harm; an attempted penetration satisfies the conduct element, and "likely to cause" catches attacks that fail. **Limb (B)** (slide 29) applies to whoever knowingly or intentionally penetrates or accesses a computer resource without or beyond authorisation and thereby obtains information, data or databases restricted for State security or foreign relations, or any restricted information, with reason to believe that it may be used to injure sovereignty and integrity, State security, friendly relations, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence, or to benefit a foreign nation or group; no terrorist intent is required, so it is in substance an espionage offence. **Punishment (s. 66F(2)):** whoever commits or conspires to commit cyber terrorism is punishable with imprisonment which may extend to life, so conspiracy is expressly covered.

18.3 Critical information infrastructure and protected systems

The appropriate Government may declare a computer resource affecting critical information infrastructure to be a protected system (s. 70); critical information infrastructure is a computer resource whose incapacitation or destruction would have a debilitating impact on national security, the economy, public health or safety, such as power grids, telecommunications, banking and transport; and unauthorised access to a protected system carries up to ten years and a fine.[†] The

National Critical Information Infrastructure Protection Centre (s. 70A) and the Indian Computer Emergency Response Team, CERT In (s. 70B), are the nodal agencies (background).

18.4 Procedure

Because life imprisonment is possible, s. 66F is cognizable and non bailable (s. 77B) and cannot be compounded (s. 77A); investigation is by an officer not below the rank of Inspector (s. 78); and s. 75 extends the Act to conduct abroad involving computers in India, although trial depends on extradition and international cooperation.

18.5 The classroom examples

Slide 30 reproduces an Indian Express report (updated 26 October 2022) that a Mumbai sessions court convicted Anees Ansari, a 32 year old computer engineer arrested in October 2014, who had used his employer's computer and internet to research a planned attack on an American school in the Bandra Kurla Complex. He received life imprisonment under s. 66F and five years under IPC s. 115 read with s. 120B, and was ordered to pay 25,000 rupees under IT Act s. 43(a). This is a press reported trial court conviction (the judgment was not seen), and it shows that research and planning on a computer can amount to cyber terrorism. Slide 31 reports a Gujarat Police FIR against the chief of Sikhs for Justice for threatening to disrupt the ICC Cricket World Cup; the provisions invoked were not verified. No reported appellate judgment on s. 66F was located, so answer problems from the text of the section.

18.6 Overlap with anti terrorism law

Section 15 of the Unlawful Activities (Prevention) Act, 1967 and, since 1 July 2024, BNS s. 113 also define terrorist acts by reference to the same intent,† and prosecutors often combine them; choosing the UAPA brings special sanction requirements, extended detention and stricter bail conditions that the IT Act does not carry.

18.7 Critical evaluation

Limb (B) attaches a possible life sentence to unauthorised access to "any restricted information" where it may be used in relation to decency, morality, contempt of court, defamation or incitement, grounds borrowed from Article 19(2); read literally, it could catch a researcher or journalist who exceeds authorised access. After *Shreya Singhal v Union of India* (2015) 5 SCC 1 struck down s. 66A for vagueness and overbreadth, Limb (B) invites a similar critique, although no challenge was located. Limb (A), which requires terrorist intent and serious harm, is far more defensible.

18.8 Examination guidance

Limb (A) needs terrorist intent, a specified cyber act and actual or likely serious harm; Limb (B) needs knowing unauthorised access to restricted information with reason to believe in its misuse; both carry up to life, including for conspiracy. Do not treat every large attack as terrorism, forget "likely to cause" or conspiracy, or ignore the UAPA and BNS. Ransomware deployed from abroad that cuts power to several districts, with a declared aim of showing the State's helplessness, satis-

fies Limb (A) (contaminant, unauthorised access, disrupted essential services, terrorist intent), with reach under s. 75; without proof of intent, ss. 43, 66 and 70 and BNS extortion apply.

Chapter 19: Obscene and Sexually Explicit Material: Sections 67, 67A and 67B

19.1 Overview

This chapter covers the content offences: the obscenity tests, ss. 67, 67A and 67B, the POCSO Act and the special law question.

19.2 Categories of content

Slide 32 distinguishes **erotica** (art or literature on a sexual theme, not mainly for arousal), **pornography** (produced solely for arousal), **obscene material** (likely to deprave and corrupt) and **extreme content** (child abuse images and violent or extreme obscenity). Obscene and extreme content is punished, sexually explicit material is punished when published electronically, and genuine erotica is protected by the public good exception.

19.3 How the tests for obscenity developed

R v Hicklin (1868)† asked whether the matter tends to deprave and corrupt those whose minds are open to immoral influences and into whose hands it may fall, judging by the most vulnerable reader (slide 33); the UK Obscene Publications Act 1959 substituted the average reasonable person likely to encounter the material. *Miller v California* (1973)† (slide 34) excludes obscenity from First Amendment protection where the average person, applying contemporary community standards, finds that the work as a whole appeals to the prurient interest, it depicts sexual conduct in a patently offensive way, and as a whole it lacks serious literary, artistic, political or scientific value. In India, *Ranjit D. Udeshi v State of Maharashtra* (1965)† (slide 35) upheld IPC s. 292 under Article 19(2) (decency and morality) in a prosecution for selling *Lady Chatterley's Lover*, applying a modified *Hicklin* test under which obscenity without a preponderating social purpose is unprotected, the law protecting those whose prurient minds delight in erotic writing. Section 292(1) (slide 36) deems material obscene if it is lascivious, appeals to the prurient interest, or, taken as a whole, tends to deprave and corrupt its likely audience; it is now BNS s. 294.† *Bobby Art International v Om Pal Singh Hoon* (1996)† judged the scenes of *Bandit Queen* in the context of the film's message about violence against a woman; *Ajay Goswami v Union of India* (2007)† required contemporary mores and national standards; and *Aveek Sarkar v State of West Bengal* (2014) 4 SCC 257 replaced *Hicklin* with the community standards test, holding that a nude photograph of a tennis player and his fiancée, published to oppose racism, was not obscene under s. 292 or s. 4 of the Indecent Representation of Women (Prohibition) Act, 1986 (slides 37 and 38).

Apoorva Arora v State (Govt of NCT of Delhi) (2024 INSC 223; Supreme Court, A.S. Bopanna and Pamidighantam Sri Narasimha JJ, 19 March 2024). Slide 43 shows the interim stage of the *College Romance* case, when the Court protected the director and actors from arrest and Harish Salve argued that offending content could be taken down but the police should be kept out. **Facts:** on 6 March 2023 the Delhi High Court held the web series' expletive laden language obscene and likely

to corrupt young minds, and upheld an FIR under ss. 67 and 67A. **Held:** the appeals were allowed and the FIR quashed: vulgarity and profanity are not by themselves obscene; obscenity concerns material that arouses sexual and lustful thoughts, judged under the *Aveek Sarkar* community standards test on the work as a whole and in context; and s. 67A requires a sexually explicit act, which was absent. **Significance:** ss. 67 and 67A cannot be used against content that is merely crude or offensive.

19.4 Section 67: publishing or transmitting obscene material

Whoever publishes or transmits, or causes to be published or transmitted, in electronic form material that is lascivious or appeals to the prurient interest, or tends to deprave and corrupt persons likely to read, see or hear it, is punishable on a first conviction with up to three years and a fine up to five lakh rupees, and on a subsequent conviction with up to five years and a fine up to ten lakh rupees. Its ingredients (slide 39) mirror IPC s. 292(1) except for the punishment, so the obscenity case law applies.

Imran Khan v State of Uttar Pradesh (2025:AHC:56788; 2025 SCC OnLine All 2303; Allahabad High Court, Saurabh Srivastava J, 17 April 2025; slide 40). **Facts:** the applicant was charged under IPC ss. 147 to 149 and IT Act s. 67 after a provocative post allegedly led 600 to 700 people to gather for an unauthorised procession, but he had only "liked" another person's post. **Held:** the proceedings were quashed, because liking is neither publishing nor transmitting, and s. 67 punishes obscene (lascivious or prurient) material, not merely provocative content. An earlier 2023 decision of the same court reportedly took the same view of likes while treating sharing or reposting as transmission.†

19.5 Section 67A: sexually explicit material

Whoever publishes or transmits in electronic form material containing a sexually explicit act or conduct is punishable on a first conviction with up to five years and a fine up to ten lakh rupees, and on a subsequent conviction with up to seven years and a fine up to ten lakh rupees (slide 41); no tendency to deprave need be shown. *State of West Bengal v Animesh Boxi* (2018; slide 41) was a "revenge porn" case: after a three year relationship, the accused obtained intimate images (allegedly by hacking the victim's phone), threatened to publish them, and uploaded them to a pornographic site with her and her father's identities; convicted under ss. 66E, 66C, 67 and 67A, he was sentenced by the Tamluk magistrate to five years and a 9,000 rupee fine.† In *Akshay Sripad Rao v State of Maharashtra* (2017; slide 42), the FIR alleged that the accused disrobed the victim, photographed her naked and uploaded the images to 145 pornographic websites, as forensic analysis confirmed, and the court found a prima facie case under ss. 67 and 67A and IPC ss. 354A and 354D.†

19.6 Exceptions to Sections 67, 67A and 67B

Under the exception in s. 67A, which applies to ss. 67 and 67A, and the identical proviso to s. 67B (slide 44), the offences do not extend to electronic books, writings, drawings, paintings, representations or figures proved to be justified as being for the public good in the interest of science, literature, art, learning or other objects of general concern, or kept or used for bona fide heritage or re-

ligious purposes, such as medical texts, sex education and classical or religious art. The person relying on the exception bears the burden of proving it.

19.7 Section 67B: child sexual abuse material

Section 67B punishes whoever (a) publishes or transmits material depicting children in sexually explicit acts; (b) creates text or digital images, collects, seeks, browses, downloads, advertises, promotes, exchanges or distributes material depicting children in an obscene, indecent or sexually explicit manner; (c) cultivates, entices or induces children into online relationships for sexually explicit acts or in a manner that may offend a reasonable adult; (d) facilitates abusing children online; or (e) records in electronic form his own or others' abuse involving sexually explicit acts with children. "Children" are persons under eighteen; the punishment matches s. 67A; and clause (c) criminalises online grooming before any image exists. The POCSO (Amendment) Act, 2019 (slides 44 and 45) defines child pornography as any visual depiction of sexually explicit conduct involving a child, including photographs, videos and digital or computer generated images indistinguishable from, or modified to appear to depict, a child. POCSO s. 14 punishes using children for pornographic purposes (at least five years with fine; seven on repetition), and the substituted s. 15 punishes storing or possessing such material without deleting, destroying or reporting it, with intent to share (a fine of at least 5,000 rupees, or 10,000 on repetition); storing it for transmitting, displaying or distributing, except for reporting or court evidence (up to three years, fine, or both); and storing it for commercial purposes (three to five years, fine, or both; five to seven years with fine on repetition).

Just Rights for Children Alliance v S. Harish (2024 INSC 716; Supreme Court, 23 September 2024; slide 46). **Facts:** the Madras High Court had quashed proceedings against a man who downloaded and kept child sexual abuse material on his phone, holding that downloading and viewing without publication or transmission was not an offence under s. 67B or POCSO s. 15. **Held:** the order was set aside and the proceedings restored: storage or possession without deletion or reporting can itself indicate the intention required by POCSO s. 15, and s. 67B covers creating, collecting, seeking, browsing and downloading, not only publication. The Court urged Parliament to replace "child pornography" with "child sexual exploitative and abuse material" (CSEAM) and directed courts to use that term. **Significance:** the leading authority on possession and viewing offences.

19.8 The special law: *Sharat Babu Digumarti*

Sharat Babu Digumarti v Government (NCT of Delhi) ((2017) 2 SCC 18; Dipak Misra and Prafulla C. Pant JJ, 14 December 2016). **Facts:** an obscene clip was listed for sale on Baazee.com in 2004, and an officer of the company, discharged under s. 67, still faced IPC s. 292. **Held:** where the offence concerns obscene material in electronic form, s. 67, read with ss. 79 and 81, is a special scheme that excludes s. 292, so the general law cannot be invoked for the same conduct. **Significance:** the leading authority on the IT Act and the general law, now read with the Bombay High Court Full Bench's ingredient test (Chapter 16).

19.9 Examination guidance

Section 67 covers electronic obscenity judged by community standards (*Aveek Sarkar*, *Apoorva Arora*), s. 67A sexually explicit material, and s. 67B a wide range of conduct involving children, in-

cluding browsing and downloading (*Just Rights for Children Alliance*). Do not treat profanity as obscenity, a like as publication, s. 67B as requiring publication, or the general obscenity offence as available alongside s. 67 for the same material. A man who shares a former partner's intimate videos in a group, and a member who reposts them, both commit ss. 66E and 67A (non bailable; s. 66E not compoundable because the victim is a woman), unlike someone who merely likes the post.

Chapter 20: Procedure, Jurisdiction and the General Criminal Law

20.1 Overview

This chapter covers procedure, jurisdiction, corporate liability and the relationship with the new criminal codes.

20.2 Cognizability, bail and compounding

Under s. 77B, notwithstanding the CrPC (now read with the BNSS†), offences punishable with three years and above are cognizable and those punishable with three years are bailable. Sections 65, 66, 66B, 66C, 66D and 66E, and s. 67 on a first conviction, are therefore cognizable and bailable, while s. 66F, s. 67 on a subsequent conviction, s. 67A and s. 67B are cognizable and non bailable; s. 43 is civil. Under s. 77A, courts may compound offences other than those punishable with life or more than three years, but not where a previous conviction attracts enhanced or different punishment, or where the offence affects socio economic conditions or is committed against a child under eighteen or a woman. Sections 65, 66, 66B, 66C and 66D are compoundable; s. 66E and s. 67 on a first conviction are compoundable only where the victim is not a woman or child; and ss. 66F, 67A and 67B, and s. 67 on a subsequent conviction, are not compoundable.

20.3 Investigation, search and territorial reach

Offences are investigated by an officer not below the rank of Inspector (s. 78, lowered from Deputy Superintendent in 2008); such an officer, or another authorised officer, may enter a public place, search it and arrest without warrant anyone reasonably suspected of an offence under the Act (s. 80);† and the Act applies to offences and contraventions committed outside India by any person if they involve a computer, system or network in India (s. 75).

20.4 Companies, intermediaries and the overriding effect of the Act

Under s. 85, persons in charge of and responsible to a company for its business are deemed guilty of its offences unless they prove lack of knowledge or due diligence, and directors or officers whose consent, connivance or neglect is proved are also liable; *Aneeta Hada v Godfather Travels and Tours* (2012) held under an analogous provision that the company itself must be arraigned, reasoning applied in the Baazee.com litigation.† Intermediaries (background) are protected by s. 79 for third party content if they observe due diligence, do not initiate transmissions, select receivers or modify content, and act on actual knowledge, which *Shreya Singhal* (2015) 5 SCC 1 read down to mean a court order or government notification. Section 81 gives the Act overriding effect while sav-

ing rights under the Copyright Act, 1957 and the Patents Act, 1970 (and the DPDP Act from 13 May 2027), the basis of *Sharat Babu*.

20.5 The offences at a glance

Section 43: uncapped civil compensation, compoundable under s. 63. Section 65: three years or two lakh rupees or both. Section 66: three years or five lakh rupees or both. Section 66B: three years or one lakh rupees or both. Sections 66C and 66D: three years and one lakh rupees. Section 66E: three years or two lakh rupees or both. Section 66F: up to life. Section 67: three years and five lakh rupees, or five years and ten lakh rupees on repetition. Sections 67A and 67B: five years and ten lakh rupees, or seven years and ten lakh rupees on repetition. Cognizability, bail and compounding follow section 20.2.

20.6 The IT Act and the new criminal codes

Since 1 July 2024 the BNS, BNSS and BSA have replaced the IPC, CrPC and Evidence Act. IT Act offences are unchanged, but the slides' IPC references need BNS equivalents (check the numbers before citing†): IPC ss. 24 and 25 (slide 14) are BNS ss. 2(7) and 2(9); s. 411 (slide 19) is BNS s. 317; ss. 354C and 354D (slide 26) are BNS ss. 77 and 78; s. 292 (slides 35 and 36) is BNS s. 294; s. 419 (slide 27) is BNS s. 319; s. 120B (slide 30) is BNS s. 61; and a terrorist act, formerly defined only in UAPA s. 15, is also defined in BNS s. 113. The *Sharat Babu* and Full Bench comparison is now made against the BNS, and BNS s. 111 includes cyber crimes in organised crime, which can be used against fraud syndicates.†

20.7 Proving cyber offences

This is background. Prosecutions rest on electronic records such as logs, emails, chats, device images, CCTV and provider records. Under the BSA, secondary electronic evidence requires a certificate under s. 63, formerly Evidence Act s. 65B, which *Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal* (2020) 7 SCC 1 held mandatory.† Forensic imaging and hash values show that evidence has not been altered, a recorded chain of custody shows who handled it, and admissibility, authenticity and weight remain distinct questions.

20.8 Examination guidance

Offences punishable with three years and above are cognizable and those with three years bailable (s. 77B); compounding is limited and barred for offences against women and children (s. 77A); Inspectors investigate (s. 78); and s. 75 reaches conduct abroad involving Indian computers. Do not call s. 66E or a first s. 67 offence non bailable, compound s. 66E committed against a woman, or cite IPC sections without their BNS equivalents.

Part IV: Revision Tools

Chapter 21: Integrated Revision

21.1 Integrated problem questions

Problem 1 (Modules 5 and 6). HealthPal, a Pune symptom checker app used in India and, through a German version priced in euros, in Germany, embeds a social plugin and an advertising pixel, makes personalised advertising a condition of its free plan, lets users aged 13 and above register, and is hacked. The GDPR applies to German users under Article 3(2)(a) and the DPDP Act to Indian users under s. 3(a), with duties from 13 May 2027. Symptom data are health data needing explicit consent (Article 9(2)(a)); conditioning the free plan on advertising consent fails Article 7(4) and Recital 43, and advertising is not contractually necessary, as the Meta decisions show; embedding the tools makes HealthPal a joint controller for collection and transmission (*Fashion ID*); and the DPDP Act's unconditional, necessity limited consent (s. 6(1)) is not met either. Users under 16, or the German age, need parental consent (Article 8), while under the DPDP Act every user under 18 needs verifiable parental consent and cannot be tracked or targeted (s. 9). The breach requires notifying the authority within 72 hours and promptly informing users at high risk (Articles 33 and 34), and under the DPDP Act intimating the Board and every affected user with a 72 hour report (Rule 7); until 13 May 2027 users suffering wrongful loss may claim compensation under IT Act s. 43A, health data being sensitive under the SPDI Rules. The business model fails on consent and children under both laws, exposing HealthPal to GDPR fines, DPDP penalties of up to 250 crore rupees once in force, and s. 43A claims meanwhile.

Problem 2 (Module 7). On leaving a software company, Riya copies its proprietary code, logs into the company's cloud account with her manager's password and deletes client files, and later sends a colleague's intimate photographs to a group chat. Copying is a s. 43(b) contravention and, if dishonest, a s. 66 offence (s. 65 only if the code must be kept by law); using the manager's password is s. 43(a) access and s. 66C identity theft; deleting files is s. 43(d) and (i) and, if dishonest, s. 66; and sending the photographs is s. 66E and, if explicit, s. 67A, which is non bailable, while s. 66E cannot be compounded because the victim is a woman. The company may claim compensation before the adjudicating officer (or a civil court above five crore rupees), and Riya may be prosecuted under ss. 66, 66C, 66E and 67A, with BNS charges only where they add an ingredient (the Full Bench test).

Problem 3 (Modules 6 and 7). A ransomware group abroad encrypts a city water utility's systems, threatens to leak customer data and declares that it wants to show that the State cannot protect its people; water supply fails for two days. A contaminant and unauthorised access that disrupt essential services, with a declared intent to strike terror, satisfy s. 66F(1)(A); s. 75 gives the Act reach; s. 70 applies if the systems are protected; and UAPA s. 15 and BNS s. 113 overlap.† If intent cannot be proved, ss. 43 and 66 and BNS extortion apply. From 13 May 2027 the utility must intimate the

Board and its customers (s. 8(6), Rule 7) and risks penalties if its safeguards were unreasonable. The result is a prosecution for cyber terrorism, punishable with up to life, together with regulatory exposure for the utility.

21.2 Final revision notes

Module 5: Charter Article 8 and TFEU Article 16 make data protection a fundamental right; *Big Brother Watch* (Grand Chamber, 2021) demands end to end safeguards; scope turns on Articles 2 and 3 (*Jehovah's Witnesses*, *Google Spain*); *Breyer*, *Nowak* and *EDPS v SRB* define personal data; *Fashion ID* limits joint control; Article 5 sets seven principles and Article 6 six bases; consent follows Articles 4(11), 7 and 8 (the CNIL's Google fine was upheld on 19 June 2020); *Lindqvist* was decided on 6 November 2003; *Google Spain* created delisting; Article 22 governs automated decisions; *Schrems II* is *DPC v Facebook Ireland* (16 July 2020); and the most cited recitals are 22, 23, 26, 32, 39, 43, 47, 50, 71, 85 and 104. **Module 6:** *Puttaswamy* (2017) sets legality, legitimate aim and proportionality; the JPC was chaired by Meenakshi Lekhi and then P.P. Chaudhary (report of 16 December 2021); the key definitions are in s. 2(g), (i), (j), (k), (l), (t) and (z); processing needs consent or a legitimate use; every breach is intimated, with a 72 hour report; children are under 18; the 2026 Order amended ss. 9(1) and 10(2)(c)(ii); commencement runs 13 November 2025, 13 November 2026 and 13 May 2027; transfers follow a negative list; and s. 43A survives until 13 May 2027. **Module 7:** s. 43 imposes uncapped civil liability and s. 66 is its criminal form; s. 65 needs source code required by law (*Syed Asifuddin*, 2005); ss. 66C and 66D cover identity theft and personation, including digital arrest frauds now under CBI investigation; s. 66E protects every gender; s. 66F needs terrorist intent and carries life (Anees Ansari, 2022); *Apoorva Arora*, *Imran Khan*, *Just Rights for Children Alliance* and *Sharat Babu* state the current law on ss. 67 to 67B; and procedure follows ss. 75, 77A, 77B and 78, read with the BNS, BNSS and BSA.

Appendices

Appendix A: Glossary

Access (IT Act). Gaining entry into, instructing or communicating with the logical, arithmetical or memory function resources of a computer, system or network (s. 2(1)(a)).

Accountability. The controller's duty to comply with the GDPR principles and to be able to demonstrate compliance (art. 5(2)).

Adequacy decision. A European Commission decision that a third country ensures protection essentially equivalent to that in the EU (art. 45).

Anonymisation. Processing that makes data no longer relate to an identifiable person by any means reasonably likely to be used; anonymous data fall outside the GDPR.

Authentication. Confirming that a user is who she claims to be, for example by a password or biometric check.

Authorisation. Determining what an authenticated user is permitted to do.

Binding corporate rules. Internal rules approved by a supervisory authority for transfers within a corporate group (art. 47).

Consent Manager. A person registered with the Board that lets a Data Principal give, manage, review and withdraw consent through one interoperable platform (DPDP s. 2(g)).

Controller. The person or body that determines the purposes and means of processing (GDPR art. 4(7)).

Critical information infrastructure. A computer resource whose incapacitation or destruction would debilitate national security, the economy, public health or safety (IT Act s. 70).

Cyber terrorism. The offence in IT Act s. 66F.

Data Fiduciary. The DPDP term for a person who determines the purpose and means of processing (s. 2(i)).

Data Principal. The DPDP term for the individual to whom personal data relates, including parents of a child and guardians of a person with disability (s. 2(j)).

Data Processor. A person who processes personal data on behalf of a fiduciary or controller (DPDP s. 2(k); GDPR art. 4(8)).

Denial of service. An attack that floods a system with traffic so that legitimate users cannot use it; distributed when many machines are used.

Digital arrest. A fraud in which callers impersonate officials and threaten arrest to extort money; not a defined offence at the review date.

Encryption. Reversible transformation of data so that only a key holder can read it.

Filing system. A structured set of personal data accessible according to specific criteria (GDPR art. 4(6)).

Hashing. A one way function that turns data into a fixed length value; useful to detect alteration of evidence, but not a reliable means of anonymisation.

Household exemption. The GDPR exclusion for purely personal or household activity (art. 2(2)(c)).

Joint controllers. Two or more controllers who jointly determine purposes and means (art. 26).

Legitimate uses. The DPDP grounds other than consent (s. 7).

Personal data. GDPR: any information relating to an identified or identifiable natural person (art. 4(1)). DPDP: any data about an individual who is identifiable by or in relation to such data (s. 2(t)).

Personal data breach. DPDP: unauthorised processing or accidental disclosure, acquisition, sharing, use, alteration, destruction or loss of access compromising confidentiality, integrity or availability (s. 2(u)).

Phishing. Fraudulent messages that impersonate a trusted body to obtain credentials or money.

Processing. Any operation on personal data (GDPR art. 4(2)); under the DPDP Act, a wholly or partly automated operation on digital personal data (s. 2(x)).

Profiling. Automated processing to evaluate personal aspects of a person, such as preferences or behaviour (GDPR art. 4(4)).

Pseudonymisation. Processing so that data cannot be attributed to a person without separately kept additional information (GDPR art. 4(5)).

Significant Data Fiduciary. A fiduciary notified under DPDP s. 10 that bears additional duties (s. 2(z)).

Special categories. The sensitive data listed in GDPR art. 9(1).

Standard contractual clauses. Model transfer clauses adopted by the Commission (Decision (EU) 2021/914).

Transfer impact assessment. An exporter's assessment of whether the destination country's law allows transfer safeguards to work, required in practice after *Schrems II*.

Appendix B: Abbreviations

AO: Adjudicating officer (IT Act s. 46); **BCR**: Binding corporate rules; **BNS**: Bharatiya Nyaya Sanhita, 2023; **BNSS**: Bharatiya Nagarik Suraksha Sanhita, 2023; **BSA**: Bharatiya Sakshya Adhiniyam, 2023; **CBI**: Central Bureau of Investigation; **CERT In**: Indian Computer Emergency

Response Team; **CFAA**: Computer Fraud and Abuse Act (United States); **CFSP**: Common Foreign and Security Policy; **CII**: Critical information infrastructure; **CJEU**: Court of Justice of the European Union; **CNIL**: Commission nationale de l'informatique et des libertés (French data protection authority); **COPPA**: Children's Online Privacy Protection Act of 1998 (United States); **CSEAM**: Child sexual exploitative and abuse material; **DPC**: Data Protection Commission (Ireland); **DPDP**: Digital Personal Data Protection; **DPF**: EU and United States Data Privacy Framework; **DPIA**: Data protection impact assessment; **DPO**: Data protection officer; **ECHR**: European Convention on Human Rights; **ECLI**: European Case Law Identifier; **ECtHR**: European Court of Human Rights; **EDPB**: European Data Protection Board; **EDPS**: European Data Protection Supervisor; **EEA**: European Economic Area; **ESN**: Electronic Serial Number; **FIR**: First Information Report; **FTC**: Federal Trade Commission (United States); **GDPR**: General Data Protection Regulation, Regulation (EU) 2016/679; **G.S.R.**: General Statutory Rules (Gazette notification series); **HIPAA**: Health Insurance Portability and Accountability Act of 1996 (United States); **IPC**: Indian Penal Code, 1860 (repealed from 1 July 2024); **IT Act**: Information Technology Act, 2000; **JPC**: Joint Parliamentary Committee; **MeitY**: Ministry of Electronics and Information Technology; **NCIIPC**: National Critical Information Infrastructure Protection Centre; **NCRB**: National Crime Records Bureau; **NCRP**: National Cyber Crime Reporting Portal; **OECD**: Organisation for Economic Co operation and Development; **PDP Bill**: Personal Data Protection Bill (2018 draft; 2019 Bill); **POCSO**: Protection of Children from Sexual Offences Act, 2012; **RTI Act**: Right to Information Act, 2005; **SCC**: Standard contractual clauses (EU); also Supreme Court Cases (law report); **S.O.**: Statutory Order (Gazette notification series); **SPDI Rules**: Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011; **TDSAT**: Telecom Disputes Settlement and Appellate Tribunal; **TFEU**: Treaty on the Functioning of the European Union; **UAPA**: Unlawful Activities (Prevention) Act, 1967.

Appendix C: Table of Cases

C.1 Indian cases

Case	Citation and court	Chapter
Aneeta Hada v Godfather Travels and Tours	(2012) 5 SCC 661, SC†	20
Apoorva Arora v State (Govt of NCT of Delhi)	2024 INSC 223, SC, 19 March 2024	19
Ajay Goswami v Union of India	(2007) 1 SCC 143, SC†	19
Akshay Sripad Rao v State of Maharashtra	2017, as described on slide 42†	19
Arjun Panditrao Khotkar v Kailash Kushanrao Gorantyal	(2020) 7 SCC 1, SC† (background)	20
Aveek Sarkar v State of West Bengal	(2014) 4 SCC 257, SC	19
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Binu Tamta v High Court of Delhi	Writ petition under Article 32, SC, 2013, as described on slide 23†	17
Bobby Art International v Om Pal Singh Hoon	(1996) 4 SCC 1, SC†	19
C R Neelakandan v Union of India	WP(PIL) No. 15 of 2026, Kerala HC†	13
Gagan Harsh Sharma v State of Maharashtra	2018 SCC OnLine Bom 17705; (2019) Cri LJ 1398; Bombay HC, 26 October 2018	16
Imran Khan v State of Uttar Pradesh	2025:AHC:56788; 2025 SCC OnLine All 2303; Allahabad HC, 17 April 2025	19
In Re: Victims of Digital Arrest Related to Forged Documents	Suo motu, SC, from 17 October 2025	17

Just Rights for Children Alliance v S. Harish	2024 INSC 716, SC, 23 September 2024	19
Justice K.S. Puttaswamy (Retd.) v Union of India	(2017) 10 SCC 1, SC (nine judges)	9
Justice K.S. Puttaswamy (Retd.) v Union of India (Aadhaar)	(2019) 1 SCC 1, SC (five judges)	9
Kharak Singh v State of Uttar Pradesh	1962, SC (overruled in part)	9
M.P. Sharma v Satish Chandra	1954, SC (overruled in part)	9
National Association of Software and Service Companies v Ajay Sood	Delhi HC, 2005†	17
Ranjit D. Udeshi v State of Maharashtra	AIR 1965 SC 881†	19
Sharat Babu Digumarti v Government (NCT of Delhi)	(2017) 2 SCC 18, SC, 14 December 2016	16, 19
Shreya Singhal v Union of India	(2015) 5 SCC 1, SC (background)	18, 20
State of West Bengal v Animesh Boxi	Tamluk court, 2018, as described on slide 41†	19
Syed Asifuddin v State of Andhra Pradesh	2005 Cri LJ 4314; 2006 (1) ALD (Cri) 96; AP HC, 29 July 2005	16
Venkatesh Nayak v Union of India	W.P.(C) No. 177 of 2026, SC (pending)	13

C.2 European cases

Case	Citation	Chapter
Big Brother Watch and Others v United Kingdom	ECtHR, Apps. 58170/13, 62322/14, 24960/15; Chamber 13 Sept 2018; Grand Chamber 25 May 2021	1
Breyer v Bundesrepublik Deutschland	Case C 582/14, CJEU, 19 Oct 2016	3
Data Protection Commissioner v Facebook Ireland and Schrems (*Schrems II*)	Case C 311/18, CJEU (GC), 16 July 2020	8
Dun & Bradstreet Austria	Case C 203/22, CJEU, 27 Feb 2025†	7
EDPS v Single Resolution Board	Case C 413/23 P, CJEU, 4 Sept 2025, ECLI:EU:C:2025:645	3
Fashion ID GmbH & Co. KG v Verbraucherzentrale NRW eV	Case C 40/17, CJEU, 29 July 2019	3
Google Spain SL v AEPD and Costeja González	Case C 131/12, CJEU (GC), 13 May 2014	2, 7
Google v CNIL	Case C 507/17, CJEU, 24 Sept 2019†	7
Latombe v Commission	Case T 553/23, General Court, 3 Sept 2025; appeal C 703/25 P pending	8
Lindqvist (*Criminal proceedings against Bodil Lindqvist*)	Case C 101/01, CJEU, 6 Nov 2003	6
Meta Platforms v Bundeskartellamt	Case C 252/21, CJEU, 4 July 2023†	5
Nowak v Data Protection Commissioner	Case C 434/16, CJEU (GC), 20 Dec 2017, ECLI:EU:C:2017:994	3
OT v Vyriausioji tarnybinės etikos komisija	Case C 184/20, CJEU, 1 Aug 2022†	6

Planet49	Case C 673/17, CJEU, 1 Oct 2019†	5
Schrems v Data Protection Commissioner (*Schrems I*)	Case C 362/14, CJEU (GC), 6 Oct 2015	8
SCHUFA Holding	Case C 634/21, CJEU, 7 Dec 2023†	7
Tietosuojavaltuutettu (*Jehovah's Witnesses*)	Case C 25/17, CJEU (GC), 10 July 2018	2
Wirtschaftsakademie Schleswig Holstein	Case C 210/16, CJEU, 5 June 2018†	3
Conseil d'État, *Google LLC*	No. 430810, 19 June 2020 (France)	5

C.3 Other foreign cases

Case	Citation	Chapter
DPP v Bignell	[1998] 1 Cr App R 1 (England)†	15
Miller v California	413 US 15 (1973) (United States)†	19
R v Bow Street Metropolitan Stipendiary Magistrate, ex p Government of the USA (*Allison*)	[2000] 2 AC 216 (HL)†	15
R v Gold	[1988] AC 1063 (HL)†	14
R v Hicklin	(1868) LR 3 QB 360 (England)†	19

Appendix D: Table of Statutes, Rules, Notifications and Other Instruments

D.1 India

Instrument	Status at 7 November 2026
Constitution of India, Articles 12, 14, 19, 21, 32	In force
Digital Personal Data Protection Act, 2023 (Act No. 22 of 2023)	Partly in force (Chapter 13)
G.S.R. 843(E), 13 November 2025: commencement of the DPDP Act	In force
G.S.R. 844(E) and 845(E), 13 November 2025: establishment and composition of the Board	In force
Digital Personal Data Protection Rules, 2025 (G.S.R. 846(E), 13 November 2025), corrected by G.S.R. 892(E), 11 December 2025	Phased (Rule 1)
Digital Personal Data Protection (Removal of Difficulties) Order, 2026 (S.O. 5458(E))	In force from 6 October 2026
Information Technology Act, 2000 (Act 21 of 2000), as amended by the Information Technology (Amendment) Act, 2008, the Finance Act, 2017 and the Jan Vishwas (Amendment of Provisions) Act, 2023	In force; s. 66A omitted from 30 November 2023; s. 43A omitted from 13 May 2027
S.O. 4745(E), 31 October 2023: commencement of the Jan Vishwas amendments to the IT Act	In force
SPDI Rules, 2011	In force until s. 43A is omitted†
Jan Vishwas (Amendment of Provisions) Act, 2026 (No. 8 of 2026)	Enacted; on the reading reviewed for these notes it does not amend the IT Act†
Bharatiya Nyaya Sanhita, 2023; Bharatiya Nagarik Suraksha Sanhita, 2023; Bharatiya Sakshya Adhiniyam, 2023	In force from 1 July 2024

Indian Penal Code, 1860; Code of Criminal Procedure, 1973; Indian Evidence Act, 1872	Repealed from 1 July 2024 (savings apply)
Protection of Children from Sexual Offences Act, 2012, as amended in 2019	In force
Indecent Representation of Women (Prohibition) Act, 1986	In force
Unlawful Activities (Prevention) Act, 1967	In force
Right to Information Act, 2005 (s. 8(1)(j) as substituted by DPDP s. 44(3))	In force; under challenge
Telecom Regulatory Authority of India Act, 1997 (s. 14 as amended by DPDP s. 44(1))	In force
Copyright Act, 1957, s. 63	In force
Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016, s. 57	Struck down in part (2018)
Reserve Bank of India direction on storage of payment system data (April 2018)	In force†
Digital India Act	Proposal only

D.2 European Union and international

Instrument	Status
Charter of Fundamental Rights of the EU, Articles 7, 8, 47, 52	Binding since 2009
Treaty on the Functioning of the EU, Article 16	In force
Regulation (EU) 2016/679 (GDPR)	In force since 25 May 2018
Directive 95/46/EC	Repealed
Directive (EU) 2016/680 (law enforcement)	In force†
Commission Implementing Decision (EU) 2021/914 (standard contractual clauses)	In force
Commission Implementing Decision (EU) 2023/1795 (Data Privacy Framework)	In force; upheld by the General Court; appeal pending
Regulation (EU) 2024/1689 (Artificial Intelligence Act), Article 86	Comparative only†
Digital Omnibus proposal, COM(2025) 837	Proposal only
European Convention on Human Rights, Articles 8 and 10	In force
Council of Europe Convention No. 108 (1981), modernised 2018	In force (status of the 2018 protocol not verified)
Council of Europe Convention on Cybercrime (Budapest)	In force; India not a party†
OECD Guidelines on Privacy and Transborder Flows (1980, revised 2013)	Non binding

D.3 Other foreign legislation

Instrument	Status
Health Insurance Portability and Accountability Act of 1996 and the HIPAA Privacy Rule (United States)	In force
Children's Online Privacy Protection Act of 1998 and the COPPA Rule as amended in 2025 (United States)	In force; amendments effective 23 June 2025
Computer Fraud and Abuse Act (United States)	In force
Computer Misuse Act (United Kingdom), cited on slide 3 as 1991 and usually cited as 1990†	In force
Forgery and Counterfeiting Act 1981 (United Kingdom)	In force
Obscene Publications Act 1959 (United Kingdom)	In force
Regulation of Investigatory Powers Act 2000 (United Kingdom)	Largely replaced by the Investigatory Powers Act 2016†

Appendix E: Source Mapping

E.1 and E.2 map every slide of the two presentations to the section of these notes that explains it, with a note wherever the slide needs correction (details in Appendix F); E.3 maps every syllabus.md topic.

E.1 GDPR.pdf (55 slides)

Slides 1 (General Data Protection Regulation): administrative; 2 (cartoon): 1.2, 4.5; 3 (Right to Privacy I): 1.2; 4 (Right to Privacy II): 1.4, cite the Grand Chamber judgment of 25 May 2021; 5 (Data Protection Law Models): 1.5; 6 (Meaning of Data Protection Law): 1.2; 7 (International Data Protection Initiatives): 1.6; 8 (OECD: First International Guidelines): 1.6; 9 (OECD Guidelines): 1.6; 10 (ECHR and Convention 108): 1.6; 11 (Convention No. 108): 1.6, protocol status not verified; 12 (Making of the European Union): 1.7; 13 (1995): 1.7, repealed by the GDPR; 14 (Primary Law): 1.8; 15 (2000): 1.8; 16 (Art. 16 TFEU): 1.8; 17 (Important International Developments): 1.7; 18 (2016): 1.7; 19 (GDPR: Article 1): 1.7; 20 (GDPR: Article 1): 1.7; 21 (When does GDPR Apply? Material Scope): 2.3; 22 (Jehovah's Witnesses v Finland (2018): 2.4, formal title: Tietosuojavaltuutettu; 23 (Concept of Personal Data I): 2.2, 3.2; 24 (Concept of Personal Data II): 3.2, 3.3, 3.5, read with EDPS v SRB (2025); 25 (Concept of Personal Data III): 3.2, converted to text; 26 (Concept of Personal Data III): 3.4, not in syllabus.md; covered; 27 (Data Processing): 2.2; 28 (When does not GDPR Apply?): 2.3;

29 (When does not GDPR Apply?): 2.3; 30 (Where does GDPR Apply?): 2.5, 2.6; 31 (Definition of Controller and Processor): 2.2, 3.6; 32 (Joint Controllership (Art. 26): 3.7; 33 (Territorial Scope): 2.5; 34 (Territorial Scope): 2.5; 35 (Territorial Scope): 2.5, 2.6, facts only; analysis added; 36 (Territorial Scope): 2.6; 37 (Territorial Scope): 2.6; 38 (Territorial Scope): 2.6; 39 (Data Protection Principles): 4.2; 40 (Data Protection Principles): 4.2; 41 (Data Protection Principles): 4.3; 42 (Data Protection Principles): 4.4; 43 (Lawful Processing under GDPR): 5.2; 44 (Lawful Processing under GDPR): 5.3; 45 (Lawful Processing under GDPR): 5.2; 46 (Lawful Processing under GDPR): 5.5, out of date: fine upheld 19 June 2020; Irish DPC decisions January 2023; 47 (Purpose Limitation): 4.5; 48 (Purpose Limitation): 4.5; 49 (Data Minimization): 4.6; 50 (Data Accuracy): 4.6; 51 (Storage Limitation): 4.6; 52 (Integrity and Confidentiality): 4.7; 53 (Accountability): 4.8; 54 (Sensitive Personal Data): 6.2, 6.3, correct name Lindqvist; decided 6 November 2003; 55 (Data Subject Rights under GDPR): 7.2.

E.2 CyberCrimes.pdf (46 slides)

Slides 1 (Cybercrimes: A Legal Challenge?): 14; 2 (Challenges of Cybercrime): 14.2; 3 (Application of Criminal Law?): 14.3, uK Act usually cited as 1990, not 1991†; 4 (Defining Cybercrime): 14.4; 5 (CoE Convention on Cybercrime): 14.5, party count changes; India not a party†; 6 (Recent Trends): 14.6, dated statistics; 7 (Cyber Contravention and Cyber Offences): 14.7; 8 (Section 43 I): 15.2, 15.3, current; English cases persuasive; 9 (Section 43 II): 15.2; 10 (Section 43 III): 15.2; 11 (Section 43 IV): 15.2; 12 (Section 43 V): 15.2; 13 (Section 43 VI): 15.2; 14 (Section 66 and 43): 16.3, iPC now BNS ss. 2(7), 2(9)†; 15 (Problem I): 15.6, hypothetical; answered; 16 (Problem II): 15.6, hypothetical; answered; 17 (The Case of Aaron Swartz): 15.7, foreign background; 18 (Section 65): 16.2, decided 29 July 2005; 2005 Cri LJ 4314; 19 (Section 66B): 16.4, iPC s. 411 now BNS s. 317†; 20 (Section 66C and 66D): 17.2 to 17.4; 21 (Section 66C and 66D): 17.4, not verified†; 22 (Digital Arrest): 17.5, updated: CBI investigation (1 December 2025); directions (August 2026); 23 (Section 66E): 17.6; 24 (Section 66E): 17.6, real events; 25 (Section 66E): 17.6, real event; IPC now BNS; 26 (Sections 354C and 354D IPC): 17.7, now BNS ss. 77, 78†; 27 (Section 66E): 17.6, real event; 28 (Section 66F): 18.2; 29 (Section 66F): 18.2; 30 (news report): 18.5, trial court; reported October 2022; 31 (news report): 18.5, provisions not verified; 32 (Obscenity Laws): 19.2; 33 (Obscenity Test: UK): 19.3, foreign background; 34 (Obscenity Test: US): 19.3, foreign background; 35 (Obscenity Test: India): 19.3, hicklin replaced by Aveek Sarkar (2014); 36 (Obscenity Test: India): 19.3, now BNS s. 294†; 37 (Obscenity Test: India): 19.3; 38 (Obscenity Test: India): 19.3; 39 (Cyber Obscenity: Section 67): 19.4; 40 (Cyber Obscenity: Section 67): 19.4, verified: 17 April 2025; 41 (Cyber Obscenity: Section 67A): 19.5, not verified†; 42 (Cyber Obscenity: Section 67A): 19.5, not verified†; 43 (Cyber Obscenity: Section 67A): 19.3, out of date: FIR quashed 19 March 2024 (2024 INSC 223); 44 (Cyber Obscenity: Section 67B): 19.6, 19.7; 45 (Cyber Obscenity): 19.7; 46 (Cyber Obscenity): 19.7.

E.3 syllabus.md topics

Topic	syllabus.md entry	Slides	Provision and case	Section	Status
Primary EU law	Module 5, Foundations	GDPR 14 to 16	Charter arts. 7, 8; TFEU art. 16	1.8	In force
Sectoral and omnibus models	Module 5, Foundations	GDPR 5	HIPAA; COPPA	1.5	In force; COPPA amended
Mass surveillance	Module 5, Foundations	GDPR 4	ECHR arts. 8, 10; Big Brother Watch	1.4	Persuasive; Grand Chamber 2021
Material scope and filing systems	Module 5, Scope	GDPR 21, 22, 28, 29	Arts. 2, 4(6); Recitals 16, 18; Jehovah's Witnesses	2.3, 2.4	In force
Territorial scope	Module 5, Scope	GDPR 30, 33 to 35	Art. 3(1); Recital 22; Google Spain	2.5	In force
Extraterritorial scope	Module 5, Scope	GDPR 30, 35 to 38	Art. 3(2); Recitals 23, 24; art. 27	2.6	In force
Personal data; dynamic IP addresses	Module 5, Data concepts	GDPR 23 to 26	Art. 4(1); Recitals 26, 27, 30; Breyer; Nowak	3.2 to 3.4	In force
Anonymised and pseudo-nymised data	Module 5, Data concepts	GDPR 24	Art. 4(5); Recital 26; EDPS v SRB	3.5	In force; amendment proposed
Joint controllership	Module 5, Data concepts	GDPR 31, 32	Arts. 4(7), 4(8), 26; Fashion ID	3.6, 3.7	In force

Lawfulness, fairness, transparency	Module 5, Principles	GDPR 39 to 42	Arts. 5(1)(a), 6(1), 12; Recital 39	4.3, 4.4	In force
Purpose limitation	Module 5, Principles	GDPR 2, 47, 48	Arts. 5(1)(b), 6(4); Recital 50	4.5	In force
Minimisation, accuracy, storage limitation	Module 5, Principles	GDPR 49 to 51	Arts. 5(1)(c) to (e), 16	4.6	In force
Integrity and confidentiality	Module 5, Principles	GDPR 52	Arts. 5(1)(f), 32 to 34	4.7	In force
Accountability	Module 5, Principles	GDPR 53	Art. 5(2)	4.8	In force
Consent: definition and conditions	Module 5, Consent	GDPR 43 to 45	Arts. 4(11), 7; Recital 32; Planet49†	5.2, 5.3	In force
Child's consent	Module 5, Consent	GDPR 39, 43	Art. 8	5.4	In force
Forced or bundled consent	Module 5, Consent	GDPR 46	Arts. 4(11), 7(4); Recital 43; CNIL v Google; Conseil d'État; Meta decisions	5.5	Slide out of date
Sensitive personal data	Module 5, Sensitive data	GDPR 54	Art. 9; Lindqvist; OT†	6	In force; Lindqvist decided 2003
Data subject rights	Module 5, Rights	GDPR 55	Arts. 12 to 22; Google Spain; SCHUFA†; Dun & Bradstreet†	7	In force

Cross border transfers and SCCs	Module 5, Transfers	None	Arts. 44 to 49; Schrems I; Schrems II (DPC v Facebook Ireland)	8	In force; appeal pending
Right to privacy	Module 6, History	None	Constitution art. 21; Puttaswamy (2017, 2018)	9.2	Binding
Srikrishna Committee and 2018 draft	Module 6, History	None	Draft PDP Bill 2018	9.3	Historical
Joint Parliamentary Committee	Module 6, History	None	PDP Bill 2019	9.3	Syllabus corrected
Enactment of the DPDP Act	Module 6, History	None	Act No. 22 of 2023	9.3	Partly in force
Preamble and section 3	Module 6, Scope	None	Long title; s. 3	10.2, 10.3	s. 3 from 13 May 2027
Select definitions	Module 6, Definitions	None	s. 2(g), (i), (j), (k), (l), (t), (z)	10.4	In force
Sections 4 to 6	Module 6, Chapter II	None	ss. 4 to 6; Rule 3	5.6, 11.2 to 11.4	13 May 2027 (s. 6(9) from 13 November 2026)
Rights and nomination	Module 6, Rights	None	ss. 11 to 14; Rule 14	12.2 to 12.5	13 May 2027
Consent Manager	Module 6, Rights	None	ss. 2(g), 6(7) to (9); Rule 4	12.7	13 November 2026
Rights absent in DPDP	Modules 5 and 6	GDPR 55	GDPR arts. 20, 21, 22	7.10, 12.8	Comparative

Transfer outside India	Module 6, Transfers	None	s. 16; Rules 13(4), 15	8.7, 13.2	13 May 2027
DPDP Rules 2025	Module 6, Implementation	None	G.S.R. 846(E); Venkatesh Nayak (pending)	11, 13	Phased
Foundational overview	Module 7, L1 and L2	CyberCrimes 1 to 7	s. 2(1); R v Gold	14	In force
Civil contraventions	Module 7, ss. 43 and 43A	CyberCrimes 7 to 13, 15 to 17	ss. 43, 43A, 46, 47, 57; Bignell; Allison	15	s. 43A omitted from 13 May 2027
Source code tampering	Module 7, s. 65	CyberCrimes 18	s. 65; Syed Asifuddin	16.2	In force
Computer related offences	Module 7, s. 66	CyberCrimes 12, 14, 19	ss. 66, 66B; Gagan Harsh Sharma; Full Bench	16.3 to 16.5	In force
Identity theft and personation	Module 7, ss. 66C, 66D	CyberCrimes 20 to 22	ss. 66C, 66D; NASSCOM v Ajay Sood †; digital arrest case	17.3 to 17.5	In force
Privacy violation	Module 7, s. 66E	CyberCrimes 23 to 27	s. 66E; BNS ss. 77, 78 †; Binu Tamta†	17.6, 17.7	In force
Cyber terrorism	Module 7, s. 66F	CyberCrimes 28 to 31	ss. 66F, 70 to 70B; Anees Ansari (trial court)	18	In force
Obscene and explicit material	Module 7, ss. 67 to 67B	CyberCrimes 32 to 46	ss. 67, 67A, 67B; POCSO ss. 14, 15; Aveek Sarkar; Apoorva Arora; Imran	19	In force

			Khan; Just Rights; Sharat Babu		

Appendix F: Corrections and Conflicts

Every point at which syllabus.md, a slide or a supplied text differs from the verified position at 7 November 2026.

1. syllabus.md; GDPR.pdf slide 54. What it says: *Bodil Lindqvist* (CJEU, 2004); spelt "Lindquist" on the slide. Correct position: Decided 6 November 2003, Case C 101/01; spelt Lindqvist. Discussed in: 6.3.

2. syllabus.md, Landmark Cases. What it says: *Data Protection Commissioner v Facebook Ireland* listed apart from *Schrems I* and *II*. Correct position: It is *Schrems II* (Case C 311/18, 16 July 2020). Discussed in: 8.4.

3. syllabus.md, Module 6. What it says: JPC "chaired by Meenakshi Lekhi". Correct position: Lekhi until July 2021; P.P. Chaudhary thereafter, including at presentation of the report on 16 December 2021. Discussed in: 9.3.

4. syllabus.md, Module 5. What it says: "Jehovah's Witnesses v Finland". Correct position: Informal name; formally *Tietosuojavaltuutettu*, Case C 25/17, a preliminary reference. Discussed in: 2.4.

5. syllabus.md, Module 6. What it says: 2018 draft "primarily modeled on GDPR". Correct position: A common characterisation; no authoritative source using those words was located. Discussed in: 9.3.

6. GDPR.pdf slide 4. What it says: *Big Brother Watch* (2018). Correct position: The Grand Chamber judgment of 25 May 2021 is final. Discussed in: 1.4.

7. GDPR.pdf slide 24. What it says: Pseudonymised data are subject to the GDPR. Correct position: Correct for the key holder; for a recipient without the key, see *EDPS v SRB* (2025). Discussed in: 3.5.

8. GDPR.pdf slide 46. What it says: Google's appeal pending; Meta complaints under investigation. Correct position: Fine upheld by the Conseil d'État, 19 June 2020; Irish DPC decisions January 2023. Discussed in: 5.5.

9. CyberCrimes.pdf slide 3. What it says: UK Computer Misuse Act 1991. Correct position: Usually cited as the Computer Misuse Act 1990†. Discussed in: 14.3.

10. CyberCrimes.pdf slide 5. What it says: 64 parties to the Budapest Convention. Correct position: The figure changes; check the current count. Discussed in: 14.5.

11. CyberCrimes.pdf slide 6. What it says: NCRB 2017 statistics. Correct position: Dated; use the latest NCRB report. Discussed in: 14.6.

12. CyberCrimes.pdf slides 14, 19, 26, 36. What it says: IPC ss. 24, 25, 411, 354C, 354D, 292. Correct position: IPC repealed from 1 July 2024; BNS equivalents in section 20.6†. Discussed in: 20.6.

13. CyberCrimes.pdf slide 18. What it says: *Syed Asifuddin* (2006). Correct position: Decided 29 July 2005; 2005 Cri LJ 4314 (also 2006 (1) ALD (Cri) 96). Discussed in: 16.2.

14. CyberCrimes.pdf slide 22. What it says: Suo motu cognisance of digital arrest scams. Correct position: Later orders: CBI investigation (1 December 2025); further directions (29 July and 4 August 2026). Discussed in: 17.5.

15. CyberCrimes.pdf slide 43. What it says: College Romance: interim protection. Correct position: Supreme Court quashed the FIR on 19 March 2024 (2024 INSC 223). Discussed in: 19.3.

16. Earlier research for these notes. What it says: No Section 66F case found. Correct position: Slide 30 reports a 2022 Mumbai sessions court conviction. Discussed in: 18.5.

17. dpdp_act.pdf. What it says: Original text of ss. 9(1) and 10(2)(c)(ii). Correct position: Amended by S.O. 5458(E) from 6 October 2026. Discussed in: 11.7.

18. IT Act (general). What it says: Section 66A. Correct position: Struck down in *Shreya Singhal* (2015) and formally omitted from 30 November 2023. Discussed in: Appendix D.

19. *Gagan Harsh Sharma* (2018). What it says: IPC charges cannot run with IT Act charges. Correct position: Qualified by a Bombay High Court Full Bench: compare ingredients. Discussed in: 16.5.

Appendix G: Unverified Items and Limitations

Items marked with a dagger (†) rest on standard secondary knowledge and were not checked against the primary text for these notes. They fall into these groups:

EU materials. The source of the slide examples (EDPB Guidelines 3/2018); the OECD's eight principles; the Law Enforcement Directive; *Planet49*; *Meta Platforms v Bundeskartellamt*; EDPB Opinion 08/2024; Article 82(4); the standing holding in *Fashion ID*; *Wirtschaftsakademie*; *OT*; *Google v CNIL*; *SCHUFA*; *Dun & Bradstreet Austria*; Article 86 of the AI Act; the academic debate on a right to explanation; EDPB Recommendations 01/2020; Executive Order 14086; the absence of an adequacy decision for India; and the statement that no comprehensive United States federal privacy law had been enacted.

Indian data protection materials. Features of the 2018 draft and the 2019 Bill (sensitive data, portability, right to be forgotten, turnover penalties); the SPDI Rules' list of sensitive data and the ISO 27001 standard; the RBI direction of April 2018; the composition notified by G.S.R. 845(E); *C R Neelakandan*; the reported proposal to shorten the eighteen month period; and the account aggregator comparison.

Cybercrime materials. The citation of *R v Gold*; the date of the UK Computer Misuse Act; India's position on the Budapest Convention; *DPP v Bignell* and the *Allison* case; the adjudication orders of

2010 and 2013; the clause letters of Section 2(1) of the IT Act; the IPC charges quashed in *Syed Asifuddin*; the Bank NSP case, *NASSCOM v Ajay Sood*, *Binu Tamta*, *Animesh Boxi*, *Akshay Sripad Rao* and the earlier Allahabad High Court decision of 2023; the punishment under Section 70 and the wording of Section 80; *Aneeta Hada*; *Arjun Panditrao Khotkar*; the UAPA and BNS overlap; the citations of *Hicklin*, *Miller*, *Ranjit Udeshi*, *Bobby Art* and *Ajay Goswami*; and every BNS section number in section 20.6.

Not reviewed at all. Speaker notes and hidden slides (absent from the PDF exports); the Gazette text of S.O. 5458(E) and of the corrigenda G.S.R. 892(E); the India Code text of the IT Act; the full text of most judgments, which are described from the slides, the bare texts and reports; and the books listed in syllabus.md.

Likely to change soon. Registration of Consent Managers (from 13 November 2026); appointments to the Data Protection Board; *Venkatesh Nayak*; the appeal in *Latombe*; the Digital Omnibus; and the digital arrest proceedings.

Appendix H: Bibliography

All online sources were accessed on 7 November 2026.

H.1 Course materials and bare texts supplied

Sidhu, Balraj K., "General Data Protection Regulation", class presentation (GDPR.pdf, 55 slides), Rajiv Gandhi School of Intellectual Property Law, IIT Kharagpur.

Sidhu, Balraj K., "Cybercrimes: A Legal Challenge?", class presentation (CyberCrimes.pdf, 46 slides), Rajiv Gandhi School of Intellectual Property Law, IIT Kharagpur.

syllabus.md, Information Technology Law (IP61021), Modules 5, 6 and 7.

The Digital Personal Data Protection Act, 2023 (No. 22 of 2023), Gazette of India, Extraordinary, Part II, Section 1, 11 August 2023 (dpdp_act.pdf).

Ministry of Electronics and Information Technology, Digital Personal Data Protection Rules, 2025, G.S.R. 846(E), 13 November 2025 (DPDP_Rules_2025_English_only_1.pdf).

Regulation (EU) 2016/679 (General Data Protection Regulation), Official Journal L 119, 4 May 2016 (GDPR_Bare_provisions.pdf).

H.2 Official sources

Press Information Bureau, release on the notification of the DPDP Rules, 2025 (17 November 2025): https://static.pib.gov.in/WriteReadData/specificdocs/documents/2025/nov/doc20251117695301.pdf

Ministry of Electronics and Information Technology, Office Memorandum on the amendments to the IT Act made by the Jan Vishwas (Amendment of Provisions) Act, 2023: https://www.meity.gov.in/static/uploads/2024/03/MeitY-JVA-1.pdf

Court of Justice of the European Union, judgment in Case C 413/23 P, *EDPS v Single Resolution Board* (4 September 2025): https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX%3A62023CJ0413

European Court of Human Rights, press release on the Grand Chamber judgment in *Big Brother Watch and Others v the United Kingdom*, ECHR 165 (2021): https://hudoc.echr.coe.int/app/conversion/pdf/?filename=Grand+Chamber+judgment+Big+Brother+Watch+and+Others+v.+the+United+Kingdom+-+UK+surveillance+regime%3A+some+aspects+contrary+to+the+Convention+.pdf&id=003-7028496-9484349&library=ECHR

Supreme Court of India, judgment in *Apoorva Arora v State (Govt of NCT of Delhi)*, 19 March 2024: https://api.sci.gov.in/supremecourt/2023/17000/17000_2023_16_1501_51599_Judgement_19-Mar-2024.pdf

Conseil d'État, press release on the decision of 19 June 2020 in *Google LLC* (no. 430810): https://conseil-etat.fr/actualites/rgpd-le-conseil-d-etat-rejette-le-recours-dirige-contre-la-sanction-de-50-millions-d-euros-infligee-a-google-par-la-cnil

Lok Sabha Secretariat, Report of the Joint Committee on the Personal Data Protection Bill, 2019 (December 2021), copy hosted at: https://www.iltb.net/wp-content/uploads/2024/07/17_Joint_Committee_on_the_Personal_Data_Protection_Bill_2019_1.pdf

H.3 Judgments and case reports (secondary hosts)

Sharat Babu Digumarti v Government (NCT of Delhi) (2017) 2 SCC 18: https://indiankanoon.org/doc/153597150/

Just Rights for Children Alliance v S. Harish 2024 INSC 716: https://indiankanoon.org/doc/37078038/

Gagan Harsh Sharma v State of Maharashtra (Bombay High Court, 26 October 2018): https://future.indiankanoon.org/doc/15440119/

SCC Online, report on the Bombay High Court Full Bench on IT Act and IPC offences: https://www.scconline.com/blog/?p=320369

Syed Asifuddin v State of Andhra Pradesh 2005 Cri LJ 4314, text reproduced at: https://itlaw.in/?p=570

SCC Online, report on *Imran Khan v State of UP* (17 April 2025): https://www.scconline.com/blog/post/2025/04/21/liking-post-does-not-attract-penalty-section-67-it-act-allahabad-hc/

H.4 Reports on recent developments

LiveLaw, Supreme Court directs the CBI to investigate digital arrest scam cases (1 December 2025): https://www.livelaw.in/top-stories/supreme-court-directs-cbi-to-investigate-digital-arrest-scam-cases-asks-states-to-give-consent-311774

Bar & Bench, Supreme Court issues directions to curb digital arrest scams (August 2026): https://www.barandbench.com/news/supreme-court-issues-directions-to-curb-digital-arrest-scams-asks-rbi-to-frame-sop-on-mule-accounts

The Leaflet, Supreme Court seeks response on digital arrest scams (2025): https://theleaflet.in/leaflet-reports/supreme-court-seeks-response-from-all-states-uts-on-digital-arrest-scams-mulls-cbi-probe

Free Press Journal, Supreme Court urges a standalone law on digital arrest scams (29 July 2026): https://www.freepressjournal.in/india/supreme-court-urges-standalone-law-on-digital-arrest-scams-seeks-tougher-action-against-cyber-fraud

SCC Online, report on the DPDP (Removal of Difficulties) Order, 2026: https://www.scconline.com/blog/?p=398941

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Appendix I: Index of Key GDPR Recitals

The table lists every GDPR recital explained in these notes, in numerical order, with the Article it explains and the section where it is discussed. Each chapter of Part I explains its recitals in a section headed "Key recitals for this chapter".

Recital	Subject	Related provision	Discussed in
1	Data protection as a fundamental right	Charter art. 8(1); TFEU art. 16(1)	1.9
4	The right is not absolute; proportionality and other Charter rights	arts. 6(1)(f), 17(3), 85	1.9
6	Technological developments and globalisation	General	1.9
7	A strong and coherent framework; individual control	General	1.9
9	Fragmentation under Directive 95/46/EC	art. 1	1.7, 1.9
14	Natural persons of any nationality; legal persons excluded	arts. 1, 4(1)	2.8
15	Technological neutrality; manual filing systems	art. 2(1)	2.8
16	National security and foreign policy outside scope	art. 2(2)(a), (b)	2.3, 2.8
18	Household exemption; providers of the means remain covered	art. 2(2)(c)	2.3, 2.8
22	Establishment through stable arrangements	art. 3(1)	2.5, 2.8
23	Offering goods or services; factors showing intention	art. 3(2)(a)	2.6, 2.8
24	Monitoring behaviour; tracking and profiling	art. 3(2)(b)	2.6, 2.8
26	Identifiability; pseudonymised and anonymous data	arts. 4(1), 4(5)	3.2, 3.5, 3.9
27	Deceased persons	art. 4(1)	3.2, 3.9
28	Pseudonymisation reduces risk	arts. 4(5), 25, 32	3.9

30	Online identifiers such as IP addresses and cookies	art. 4(1)	3.3, 3.9
32	How consent is given; pre ticked boxes	arts. 4(11), 7	5.2, 5.7
33	Consent for scientific research	arts. 6(1)(a), 89	5.7
38	Children merit specific protection	art. 8	5.7
39	The principles: transparency, minimisation, storage, security	art. 5	4.3, 4.6, 4.10
40	A legal basis for all processing	art. 6(1)	4.10
42	Proof of consent; informed consent; genuine choice	art. 7(1), (2)	5.2, 5.7
43	Imbalance of power; conditional consent	art. 7(4)	5.2, 5.7
47	Legitimate interests; reasonable expectations; fraud; direct marketing	art. 6(1)(f)	4.10
50	Further processing and compatibility	arts. 5(1)(b), 6(4)	4.5, 4.10
51	Special categories; photographs and biometric data	art. 9	6.6
58	Transparency; information for children	art. 12(1)	7.11
63	Right of access; medical records; trade secrets	art. 15	7.11
65	Rectification and the right to be forgotten	arts. 16, 17	7.11
66	The right to be forgotten online	art. 17(2)	7.11
68	Data portability	art. 20	7.7, 7.11
69	Right to object; burden on the controller	art. 21	7.11
71	Automated decisions, profiling and explanation	art. 22	7.9, 7.11

74	Responsibility and liability of the controller	arts. 5(2), 24	4.10
75	The meaning of risk	arts. 24, 32, 35	4.10
78	Data protection by design and by default	art. 25	4.10
83	Security measures such as encryption	arts. 5(1)(f), 32	4.10
85	Breach notification to the authority within 72 hours	art. 33	4.7, 4.10
86	Breach communication to data subjects	art. 34	4.10
101	Transfers must not undermine protection	art. 44	8.8
103	Adequacy decisions	art. 45	8.8
104	Adequacy criteria; essential equivalence	art. 45	8.8
108	Appropriate safeguards	arts. 46, 47	8.8
111	Derogations for specific situations	art. 49	8.8
146	Compensation and joint liability	art. 82	7.11
150	Administrative fines	art. 83	4.10
153	Freedom of expression and journalism	art. 85	7.11